"General Welfare" and "Common Good" as Evolutionary Stable Strategies: An Extended Phenotype Analysis of Constitutional Emergency Language

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ABSTRACT

How do distinct concepts of collective benefit acquire different jurisprudential trajectories? Argentine Supreme Court jurisprudence (1922-2025) reveals "general welfare" (bienestar general), the Preamble's express wording, and "common good" (bien común), a distinct doctrinal and jurisprudential category, evolved a 17.8-fold fitness di4erential. Bienestar general dominates democratic periods (JurisRank 0.89, 60+ cases) while bien común achieved maximum fitness only during Catholic-military dictatorships (1943-1983, G-score 0.70), collapsing fourteen-fold following democratic transition while the Preamble continued to refer to bienestar general. Traditional theories cannot explain this pattern. Their different textual and doctrinal anchors preclude assuming identical treatment. Originalism expects continuity regardless of regime type. Extended Phenotype Theory (Dawkins 1982) and Evolutionary Stable Strategies (Maynard Smith 1973) explain this divergence: constitutional language functions as genetic code for institutional construction rather than semantic constraint. The divergence reflects niche specialization. Bienestar general evolved fitness in democratic regimes through genealogical link to U.S. New Deal jurisprudence (Avico 1934 citing Blaisdell), expanding via Peralta (1990) and Badaro (2007, 50+ subsequent citations). Bien común evolved fitness in authoritarian regimes through papal encyclicals requiring specific machinery (mandatory Catholic education, corporatist organization, Borda's 1968 Civil Code). When democracy dismantled this machinery (1983-1987), bien común collapsed. Cross-national analysis (n=47) confirms vague emergency language increases constitutional mutation odds 17.6-fold ($p<0.001$). Institutional friction (Switzerland's direct democracy, Canada's automatic sunsets) prevents mutation. I derive five design principles for mutation- resistant clauses and demonstrate Justice Barra's 1991 state-centric formulation had predicted negative fitness (G=-0.636), correctly forecasting zero citations and reversal (ALITT 2006). Constitutional fitness depends on systemic context, not philosophical foundations.

KEYWORDS

Extended Phenotype Theory - Evolutionary Game Theory - Constitutional Emergency Powers - General Welfare - Common Good - Argentina - Constitutional Design - Vague Language - Institutional Friction - Legal Doctrines - Evolutionary Stable Strategies

JEL Classification: K10, K40, B52, H77, C70

I. INTRODUCTION: THE PUZZLE OF SEMANTIC DIVERGENCE

1.1 Two Concepts, Different Legal Anchors

The Argentine Constitution's Preamble states the purpose of "promover el bienestar general" (promoting the general welfare). Article 75(2), in its taxation provision, uses the different wording "bien general del Estado". Neither provision says "bien común". This paper compares the constitutional expression bienestar general with bien común as a doctrinal and jurisprudential category. They must not be treated as textually identical or necessarily philosophically synonymous. The inquiry concerns their distinct uses, normative premises and institutional effects, rather than two interchangeable clauses in the constitutional text.

Yet systematic empirical investigation reveals these phrases have followed radically divergent evolutionary trajectories over the past century. A comprehensive search of Argentine Supreme Court decisions from 1922 through 2025 documents that "bienestar general" appears in more than sixty major constitutional cases, has generated multiple distinct doctrinal lineages, and exhibits a JurisRank fitness score of 0.89, indicating extremely high centrality in Argentina's constitutional network. "Bien común," by contrast, appears in only two to three cases across the same period, has generated no sustained doctrinal development, and exhibits a fitness score of approximately 0.05, indicating functional extinction as a doctrinal category; it is not the wording of the Preamble.

This 17.8-to-1 fitness diberential demands explanation. How do these distinct concepts, with different legal anchors and normative premises, acquire different levels of judicial adoption and doctrinal elaboration? Moreover, this divergence is not merely quantitative but temporal and regime-specific. "Bien común" usage peaks dramatically during authoritarian military governments (1966-1973, 1976-1983), achieving a usage score of 0.70 during these periods, while "bienestar general" usage remains relatively suppressed at 0.23. Following Argentina's 1983 democratic

transition, this pattern inverts completely: "bienestar general" usage explodes to 0.92 while "bien común" collapses to 0.05, a fourteen-fold reduction.

The divergent uses require comparison with textual, historical, doctrinal and political explanations. Textualism does not require identical treatment of expressions with different legal anchors, and originalism cannot be tested by attributing bien común to the 1853 Preamble. The evolutionary hypothesis must instead ask whether transmission channels and institutional infrastructure explain variation beyond these alternatives. Distinct normative meanings, judicial composition and political interests remain rival explanations.

1.2 The Evolutionary Framework

This paper proposes that the divergence reflects evolutionary dynamics operating on constitutional language as cultural replicators. I apply two frameworks from evolutionary biology to constitutional interpretation: Richard Dawkins' Extended Phenotype Theory (1982) and John Maynard Smith's concept of Evolutionary Stable Strategies (1973). Extended Phenotype Theory demonstrates that genes build artifacts extending beyond individual organisms—beaver dams, bird nests, termite mounds—that enhance their replication. These artifacts are as much products of natural selection as anatomical features because they influence reproductive success. Similarly, constitutional phrases are not merely text but genetic code for institutional construction. A phrase that successfully embeds itself in judicial discourse, professional training, and administrative practice builds extended phenotypes—networks of cases, doctrines, agencies, professional communities—that ensure its continued reproduction across generations of legal actors.

Evolutionary Stable Strategy theory, meanwhile, explains why certain strategies, once established in a population, resist invasion by alternatives. A strategy is evolutionarily stable when it performs well against copies of itself and when rare mutant strategies cannot outcompete it. Applied to constitutional interpretation, this framework predicts that certain phrases will achieve lock-in effects: once they dominate judicial discourse and professional training, alternative phrasings become increasingly costly to adopt, even if the alternatives might be semantically equivalent or even superior.

My central thesis integrates these frameworks: "Bienestar general" and "bien común" occupy distinct evolutionary niches defined by regime type and institutional requirements. "Bienestar general" evolved fitness advantages in democratic, technocratic regimes because it originated from Anglo-American constitutional discourse (particularly U.S. New Deal jurisprudence) and carries semantic

associations with scientific administration, crisis management, and utilitarian policy analysis. "Bien común," by contrast, evolved fitness advantages in authoritarian, Catholic-influenced regimes because it originated from papal social encyclicals and carries semantic associations with natural law, organic social hierarchy, and moral unity. These differential fitness profiles are not accidents of judicial preference but reflect genuine differences in the institutional machinery required to sustain each phrase's reproduction.

1.3 The Broader Stakes: Beyond Argentina

The divergent evolution of "bienestar general" and "bien común" illuminates three phenomena extending beyond Argentine constitutional history.

First, the comparison asks whether distinct concepts of collective benefit acquire different transmission trajectories in different institutional environments. It does not assume semantic equivalence or identical constitutional status. Its contribution depends on distinguishing institutional transmission from textual, historical and doctrinal explanations.

Second, it reveals the mechanism through which this divergence occurs: constitutional phrases function as genetic code for institutional construction, building extended phenotypes (judicial precedents, professional training, administrative agencies, revenue systems) that ensure their reproduction across generations. Phrases succeed not through semantic precision or philosophical merit but through success in constructing self-defending institutional machinery.

Third, it identifies a generalizable vulnerability: vague constitutional language—whether "bienestar general," "bien común," "general welfare," "public interest," or "national security"—enables systematic mutation when institutional friction is weak. The specific competition between "bienestar general" and "bien común" is Argentine, but the underlying principle (semantic vagueness + weak institutional checks = phenotypic mutation) operates universally.

The Avico decision (1934) demonstrates this mechanism. The Court validated mortgage moratoria during the Great Depression, explicitly citing U.S. Supreme Court's Blaisdell (1934) decided the same year. This created direct genealogical link between New Deal emergency jurisprudence and Argentine constitutional doctrine. The precedent established that "bienestar general" permits temporary suspension of contractual rights during economic crises. Yet what began as temporary emergency doctrine evolved into routine authority: Peralta (1990) extended the logic to executive

decrees confiscating bank deposits, and Badaro (2007) transformed it into permanent positive obligations requiring pension indexation. This 85-year evolution from exceptional crisis measure to routine administrative practice occurred without constitutional amendment, demonstrating how vague language enables systematic institutional mutation.

1.4 Roadmap

Section II develops the theoretical framework, explaining how Extended Phenotype Theory and Evolutionary Stable Strategy dynamics apply to constitutional language. Section III presents detailed empirical analysis of Argentina's "bienestar general" versus "bien común" divergence, including the critical role of Catholic-military institutional fusion from 1943 through 1983. Section IV models the constitutional interpretation game that produces vague language lock-in and presents empirical validation of theoretical predictions. Section V documents cross-national patterns (n=47 jurisdictions) confirming that vague emergency language predicts constitutional mutation, and analyzes negative cases (Switzerland, Canada) where institutional friction prevents mutation. Section VI derives design principles for mutation-resistant emergency clauses. Section VII concludes with implications for constitutional theory and institutional design, including limitations and future research directions.

II. THEORETICAL FRAMEWORK: EXTENDED PHENOTYPES AND EVOLUTIONARY DYNAMICS IN CONSTITUTIONAL LAW

2.1 Extended Phenotype Theory: From Genetic to Memetic Replication

Richard Dawkins' *The Extended Phenotype* (1982) revolutionized evolutionary biology by demonstrating that natural selection operates on genes' effects in the world, not merely on organisms' anatomical features. A beaver's dam is as much a product of natural selection as the beaver's teeth because variants that build better dams leave more descendants. The dam is the beaver's "extended phenotype"—an artifact constructed according to genetic instructions that enhances the genes' replication. Critically, extended phenotypes can outlive the organisms that build them and can influence multiple organisms simultaneously. A termite mound persists for decades beyond any individual termite's lifespan and shapes the behavior of millions of insects across successive generations.

Susan Blackmore's *The Meme Machine* (1999) demonstrated that cultural replication follows analogous dynamics. Ideas, practices, and linguistic forms are memes—units of cultural information that replicate through imitation, teaching, and social transmission. Successful memes build extended phenotypes just as genes do: institutional structures, professional practices, educational curricula, and physical artifacts that ensure the meme's continued transmission. A legal doctrine is not merely an idea in judges' minds but the genetic code for constructing courthouses, law schools, professional associations, and enforcement agencies.

Applied to constitutional language, Extended Phenotype Theory predicts that phrases achieve fitness not through textual elegance or semantic precision but through success in building institutional machinery. A constitutional phrase that embeds itself in judicial precedent, professional training, administrative practice, and political discourse constructs an extended phenotype ensuring its reproduction across generations of legal actors. Conversely, a phrase that fails to build such machinery—regardless of its formal constitutional status—faces functional extinction.

The Argentine case provides stark empirical confirmation. "Bienestar general" has constructed an extensive extended phenotype over 103 years. The phrase appears in the foundational case *Ercolano v. Lanteri de Renshaw* (1922), validating rent control during a post-World War I housing crisis. This precedent was explicitly cited and extended in *Avico v. De la Pesa* (1934), which upheld mortgage moratoria during the Great Depression. *Avico*, crucially, cited U.S. Supreme Court's *Home Building & Loan Association v. Blaisdell* (1934)—decided the same year—creating a direct genealogical link between New Deal emergency jurisprudence and Argentine constitutional doctrine. This lineage continued through *Peralta v. State* (1990), validating executive emergency decrees during hyperinflation, and exploded virally with *Badaro v. ANSES* (2007), which created a comprehensive pension indexation doctrine cited in more than fifty subsequent cases through 2025.

This extended phenotype includes not merely judicial decisions but institutional infrastructure. Social security administration (ANSeS), justified by "bienestar general" through Badaro doctrine, manages pension indexation affecting 7+ million retirees. Administrative agencies implementing welfare programs derive authority from elastic "bienestar general" interpretation. Professional training embeds this doctrine: every Argentine law student learns the Ercolano-Avico-Peralta-Badaro sequence as foundational constitutional law. This machinery ensures the phrase's continued reproduction even if individual judges or scholars criticize specific applications.

"Bien común," by contrast, has failed to construct equivalent machinery in democratic Argentina. As a doctrinal and jurisprudential category, rather than the wording of the Preamble, it generated only two to three Supreme Court citations across the entire democratic period (1983-2025). No foundational precedent established "bien común" doctrine. No administrative agency derives authority from it. Legal education treats it as archaic vocabulary, associated with the Catholic-military dictatorships that used it extensively from 1943 through 1983. Without institutional machinery to transmit the phrase to new generations of legal professionals, it simply stopped replicating. Any claim of functional decline must concern its doctrinal use and transmission, not a purported survival of the phrase in the constitutional text.

2.2 Evolutionary Stable Strategies: Why Lock-In Occurs

John Maynard Smith and George Price's concept of Evolutionary Stable Strategies (1973) explains why certain behavioral patterns, once established, resist replacement by alternatives. An ESS is a strategy that, when adopted by most members of a population, cannot be invaded by any rare mutant strategy. The strategy must be self-consistent (performing well when competing against copies of itself) and invasion-resistant (rare alternatives cannot achieve higher fitness).

Applied to constitutional interpretation, ESS dynamics predict that certain doctrinal approaches will achieve lock-in effects. Once "bienestar general" became the standard phrase for justifying emergency powers and welfare-state interventions, it accumulated precedential weight, professional familiarity, and institutional infrastructure that made alternative phrasings increasingly costly to adopt. Judges citing "bien común" after 1983 would face multiple disadvantages: no recent precedent supporting their usage, semantic associations with discredited authoritarian regimes, professional unfamiliarity among clerks and practitioners, and likely resistance from appellate review. The phrase's rarity itself became a liability, creating frequency-dependent selection favoring the dominant alternative.

The *Badaro* viral replication event (2007-2025) demonstrates ESS dynamics with particular clarity. *Badaro* established that pension benefits must be indexed to maintain purchasing power, deriving this requirement from constitutional "bienestar general" language. The decision could have relied on specific constitutional provisions (Article 14 bis's guarantee of "comprehensive social security") or on statutory interpretation. Instead, it anchored the doctrine in "bienestar general," explicitly citing the *Ercolano-Avico* lineage. This choice had multiplicative effects: subsequent pension cases could cite *Badaro* without relitigating foundational questions, lawyers trained in *Badaro* doctrine taught it to students and colleagues, administrative agencies

implemented *Badaro* through regulations and procedures, and pensioners' advocacy groups framed claims using *Badaro* language.

By 2025, *Badaro* had been cited in more than fifty Supreme Court pension cases and hundreds of lower court decisions. Its JurisRank centrality score of 0.87 places it in the top 5% of all Argentine constitutional precedents. Attempts to challenge *Badaro* doctrine must overcome not merely the decision itself but the entire extended phenotype it constructed: professional training, administrative procedures, advocacy networks, and two decades of follow-on precedent. This is ESS lock-in: the strategy's success makes alternatives progressively more costly, even if those alternatives might be doctrinally superior or more faithful to constitutional text.

Critically, ESS lock-in does not require that the established strategy be optimal in any global sense. Maynard Smith emphasized that evolution produces "meliorators" (improvers) rather than "optimizers" (perfect solutions). A strategy can be evolutionarily stable while simultaneously being suboptimal relative to alternatives that might have emerged under different historical conditions. Applied to constitutional language, this means vague phrases like "bienestar general" can achieve permanent dominance not because they best serve constitutional purposes but because they successfully replicated during a critical period (1922-1940s) and subsequently built machinery preventing displacement.

2.3 Niche Specialization: Why Regime Type Matters

Evolutionary biology demonstrates that species adapt to different environmental niches, even when those species are closely related and face similar selective pressures. The Galápagos finches Darwin studied evolved distinct beak shapes not because one shape was globally superior but because different shapes optimized fitness in specific ecological contexts—seed size, flower structure, insect availability. This niche specialization creates biodiversity and explains why apparently similar species coexist without one driving the others extinct.

Constitutional phrases exhibit analogous niche specialization. "Bienestar general" and "bien común" might appear interchangeable in abstract semantic analysis, but they evolved fitness advantages in radically different institutional environments. Understanding their divergent trajectories requires analyzing the extended phenotypes each phrase required and the regimes that could sustain those phenotypes.

"Bienestar general" achieved maximum fitness in democratic, technocratic regimes for several interconnected reasons. First, its semantic origins in Anglo-American constitutional discourse (particularly the U.S. Constitution's "general welfare" clause

and New Deal jurisprudence) aligned it with democratic institutional forms and utilitarian policy analysis. When Argentine judges cited *Blaisdell* in *Avico* (1934), they weren't merely borrowing doctrine but importing an entire memeplex linking emergency powers to democratic crisis management rather than authoritarian suspension of rights.

Second, "bienestar general" language proved compatible with pluralist democracy because it avoided metaphysical or theological commitments about the nature of collective good. "General welfare" can be operationalized through various metrics—GDP growth, employment rates, poverty reduction, public health indicators—without requiring consensus on ultimate values. This semantic flexibility made the phrase attractive to judges operating in democracies with diverse ideological constituencies. A judge could invoke "bienestar general" to justify pension indexation, another could use it to justify fiscal austerity, and both claims would be linguistically coherent even if substantively contradictory.

Third, "bienestar general" benefited from positive memetic associations with Argentine democracy's founding moments. *Ercolano* (1922) was decided during a democratic interlude between authoritarian periods. *Avico* (1934) explicitly linked Argentine constitutional law to U.S. New Deal precedents, which enjoyed international prestige as democratic responses to the Great Depression. By the time democracy was restored in 1983, "bienestar general" carried no taint from authoritarian abuse because the phrase had been relatively unused during military rule (G-score 0.23 during 1966-1983 dictatorships).

"Bien común," by contrast, achieved maximum fitness in authoritarian regimes with explicit Catholic ideological foundations. The phrase's semantic origins in Catholic social doctrine created specific institutional requirements for its reproduction. Papal encyclicals from *Rerum Novarum* (1891) through *Mater et Magistra* (1961) developed elaborate natural law theories of "bien común" that required several supporting institutions: mandatory religious education to transmit natural law philosophy, Church-State institutional fusion to provide moral guidance for positive law, censorship regimes to prevent "attacks on bien común," and corporatist economic organization to subordinate individual property rights to collective welfare understood theologically.

Argentine military dictatorships from 1943 through 1983 constructed precisely this institutional machinery. The result was dramatically elevated "bien común" fitness during authoritarian periods (G-score 0.70 during 1966-1983). But this fitness was niche-specific: it depended entirely on institutional fusion between Catholic Church and military state. When democracy returned in 1983 and dismantled this machinery—

making religious education optional, legalizing divorce, secularizing legal education, symbolically distancing the state from Church authority—the extended phenotype collapsed. Without mandatory religious instruction to transmit natural law philosophy, without Church oversight of legal education, without corporatist institutions subordinating individual rights to theologically-defined common good, "bien común" simply stopped replicating.

The fourteen-fold collapse in "bien común" usage (G-score 0.70 to 0.05) following democratic transition was not accidental or reversible. It reflected genuine niche specialization: the phrase had evolved such tight coupling to authoritarian-Catholic institutional forms that it could not survive their removal. This pattern validates a core prediction of niche theory: specialists outcompete generalists within their niches but face extinction when environmental conditions change. "Bien común" was a specialist adapted to Catholic authoritarianism; when that environment disappeared, so did the phrase's fitness.

III. THE ARGENTINE CASE STUDY: FORTY YEARS OF CHURCH-MILITARY INSTITUTIONAL FUSION (1943-1983)

3.1 Introduction: "Bien Común" as Extended Phenotype of Catholic-Military Alliance

The dramatic divergence between "bienestar general" and "bien común" fitness trajectories cannot be understood without examining the specific institutional machinery that sustained "bien común" reproduction during authoritarian periods. This section documents four decades of Church-military institutional fusion in Argentina (1943-1983), demonstrating how "bien común" language served as the genetic code for constructing and maintaining this alliance.

3.2 Phase 1: The 1943 Revolution and the Educational Extended Phenotype (1943-1955)

The June 4, 1943 military coup initiated systematic Church-State institutional fusion in Argentina. The coup emerged from complex motivations—military concern about civilian government weakness during World War II, nationalist opposition to British economic influence, and Catholic revival movements opposing secular liberalism—but its institutional legacy centered on educational transformation. On December 31,

1943, the military government issued Decree 18.411/43, reversing Argentina's foundational secular education law.

Ley 1420, enacted in 1884 under President Julio Argentino Roca and championed by Domingo Faustino Sarmiento, had established free, mandatory, secular primary education. This law embodied nineteenth-century liberal constitutionalism: public education would create Republican citizens through universal literacy and shared civic values, but religious instruction would remain the family's and Church's private responsibility. For nearly sixty years, Argentine public schools operated under this secular framework, making the country distinctive in Catholic Latin America.

Decree 18.411/43 reversed this settlement completely. The decree established mandatory Catholic religious instruction in all public schools, during regular school hours, taught by clergy or Church-approved lay instructors. The justification explicitly invoked "bien común": education must serve the common good, defined as moral formation within Christian tradition, not merely literacy and civic knowledge. Minister of Education Gustavo J. Martínez Zuviría, a prominent nationalist Catholic intellectual (who wrote under the pseudonym Hugo Wast), articulated the underlying philosophy: secular education produced materialistic, morally relativistic citizens incapable of recognizing transcendent truth. Authentic education required grounding in natural law and divine revelation, which only Catholic instruction could provide.

This decree constructed a specific extended phenotype for "bien común" language. First, it created institutional infrastructure: thousands of priests and religious educators entered public schools for the first time since 1884, trained tens of thousands of teachers in Catholic pedagogy, and oversaw curriculum review to eliminate materials deemed inconsistent with Church teaching. Second, it established professional capture: teachers who objected to facilitating religious instruction faced dismissal or administrative sanctions, creating strong incentives for compliance regardless of personal religious conviction. Third, it embedded transmission mechanisms: every child passing through Argentine public education after 1943 received Catholic religious instruction explicitly justified as serving "bien común," normalizing the phrase's association with Christian moral formation rather than secular public policy.

The decree's ebect on "bien común" usage became evident in Supreme Court jurisprudence. Prior to 1943, "bien común" appeared rarely and incidentally in Court decisions, typically in general doctrinal references to collective benefit without doctrinal elaboration. Following 1943, the phrase began appearing more frequently and substantively, particularly in cases involving Church-State relations, educational

policy, and public morality regulation. Judges trained under the pre-1943 secular system were gradually replaced by judges whose professional formation occurred in the post-1943 environment where "bien común" had become normalized vocabulary.

The Perón era (1946-1955) demonstrates that "bien común" fitness depended on institutional machinery rather than merely political alliance. Juan Domingo Perón, elected president in 1946, initially maintained strong Church relations. He preserved mandatory religious education, incorporated Catholic social doctrine into Peronist social programs (particularly the comprehensive social security system and labor protections), and received papal honors in 1947. The 1949 constitutional reform, though controversial for enabling Perón's reelection, retained the religious education provision. Both Church and Peronist state used "bien común" language extensively during this period: bishops praised Peronist policies as implementing Catholic social teaching, while Perón justified his programs as serving "bien común" understood within Christian tradition.

This alliance, however, proved fragile when Perón began threatening the extended phenotype itself. By 1952, Perón had consolidated authoritarian control and increasingly viewed the Church as a competing power center. In 1954, he proposed legislation separating Church and State, legalizing divorce, and making religious education optional rather than mandatory. These proposals directly threatened the institutional machinery sustaining "bien común" reproduction: eliminating mandatory religious instruction would destroy the primary transmission mechanism, legalizing divorce would reject Church authority over family law, and formal separation would end institutional fusion.

The Church's response validated Extended Phenotype Theory's predictions. Rather than supporting its erstwhile political ally, the Church hierarchy turned against Perón decisively. Episcopal pastorals condemned the proposals as attacks on Christian civilization. On June 16, 1955, during the Corpus Christi celebration in Plaza de Mayo, a bombing killed and wounded hundreds of civilians—an attack widely attributed to Peronist security forces targeting Catholic demonstrators, though definitive evidence remains disputed. Regardless of responsibility, the event crystallized Church opposition. When the September 1955 "Revolución Libertadora" coup overthrew Perón, it enjoyed explicit Church support, with bishops blessing the military uprising and characterizing it as defense of "bien común" against tyrannical usurpation.

This episode reveals a critical insight: "bien común" fitness for the Church depended on institutional control, not rhetorical usage. Perón had used "bien común" language extensively, had implemented social policies aligned with Catholic social doctrine, and

had maintained personal loyalty to Church hierarchy. But when he threatened the educational extended phenotype—the machinery ensuring generational transmission of Catholic natural law philosophy—the Church sacrificed the political alliance to preserve the institutional infrastructure. The phrase's evolutionary success required not merely that political leaders invoke it but that institutional structures existed to reproduce it across generations.

3.3 Phase 2: Onganía's Catholic Integralism and the 1968 Civil Code Reform (1966-1970)

The June 28, 1966 coup that installed General Juan Carlos Onganía represented the apogee of "bien común" doctrine in Argentine constitutional law. Unlike earlier military interventions that claimed to be temporary expedients restoring constitutional order, the "Revolución Argentina" explicitly rejected liberal democracy as philosophically bankrupt. The regime's ideological foundation drew heavily on Catholic integralism: the doctrine that state authority must be subordinated to Church moral teaching because political community serves transcendent ends that only divine revelation can specify. This philosophy had been marginal in Argentine politics despite the country's Catholic majority, but Onganía and his advisers—particularly nationalist Catholic intellectuals Jordán Bruno Genta and Julio Meinvielle et al.—sought to implement it comprehensively.

"Bien común" became the central organizing concept of this regime in ways that earlier governments, including the 1943-1955 period, had not attempted. Military proclamations announcing the coup invoked "bien común" as justification: the democratic political class had proven incapable of governing in Argentina's interests, labor unions pursued sectoral demands destructive of national unity, and liberal permissiveness was corrupting public morality. Only a government freed from democratic accountability and guided by natural law principles could restore authentic "bien común." This was not authoritarian pragmatism but Catholic political theory: democracy was problematic not merely in practice but in principle because majority rule lacked metaphysical grounding.

This philosophy achieved concrete institutional expression through systematic legal reform. The most significant was Law 17.711, enacted September 1968, which reformed approximately 200 articles of Argentina's 1869 Civil Code. The Civil Code, originally drafted by Dalmacio Vélez Sarsfield under profound influence from French legal scholar Aubrey, represented nineteenth-century liberal jurisprudence: individual rights as absolute within broad limits, contract freedom as foundational, property as

nearly sacred. The 1968 reform maintained this structure but introduced significant modifications reflecting Catholic social doctrine.

The reform's architect was Guillermo A. Borda, appointed Minister of Interior specifically for this purpose. Borda was Argentina's preeminent civil law scholar, author of a seven-volume treatise on civil law that had been the standard reference since its first edition in the 1950s and would remain so through the 1990s. Multiple generations of Argentine lawyers trained on Borda's texts, which systematically argued that Argentine positive law must be interpreted consistently with natural law principles derived from Catholic social teaching. Borda's treatise explicitly rejected legal positivism as philosophically incoherent, treating law as ultimately grounded in divine and natural order rather than human will.

The 1968 reform's centerpiece was new Article 2513, which stated: "The exercise of property rights shall be in accordance with their social function and may not be contrary to the common good [bien común]." This language had direct doctrinal lineage to papal social encyclicals. *Rerum Novarum* (1891), Leo XIII's foundational document of modern Catholic social teaching, had declared that "property has social and public aspects" requiring owners to consider effects on community welfare. *Quadragesimo Anno* (1931), Pius XI's fortieth-anniversary elaboration, intensified this teaching by stating that "ownership is under social mortgage" to the broader community. *Mater et Magistra* (1961), John XXIII's updating for the Cold War era, emphasized that "private property is subordinated to the universal destination of goods"—meaning that individual ownership rights exist within and must serve the prior claim of common human welfare.

Borda's official commentary on the reform made these connections explicit. He wrote: "The social function of property is not a socialist concept but derives from Catholic social doctrine's understanding of the bien común. Individual rights exist within and are limited by the requirements of Christian social order. Property ownership carries duties, not merely privileges, because all goods ultimately belong to God and are distributed among humans for the common good of society understood as organic unity under divine providence."

This was not mere rhetorical flourish but had practical legal consequences. Supreme Court decisions from 1968 through 1973 began regularly invoking Article 2513 to limit property rights based on "bien común" considerations. Landowners challenging urban planning regulations, businesses challenging price controls, and media companies challenging censorship all confronted judicial holdings that their claimed rights must yield to "bien común" as judicially determined. The phrase had migrated from

doctrinal discourse to operative civil law doctrine with direct ebect on property relations.

Critically, "bien común" usage during this period achieved its highest recorded frequency (G-score 0.78), significantly elevated from earlier authoritarian periods and dramatically higher than democratic periods. The Onganía regime constructed an extended phenotype far more elaborate than the 1943-1955 machinery. First, educational institutions: mandatory Catholic instruction continued and intensified, universities were purged of professors deemed ideologically incompatible with Catholic nationalism, and theology faculties gained influence over legal education accreditation. Second, legal doctrine: Borda's codification meant that every civil law course, every property rights case, every contract dispute required engagement with "bien común" language because it appeared in the operative statute. Third, professional training: law students graduating from 1968 forward learned that property rights were inherently limited by "bien común," making this a normalized rather than controversial proposition. Fourth, symbolic authority: Borda's scholarly prestige meant that dismissing "bien común" doctrine required challenging Argentina's leading civil law theorist, raising the professional costs of dissent.

The extended phenotype extended beyond legal doctrine into social policy. Marriage law maintained prohibition of divorce, justified as protecting the "bien común" of family stability and children's welfare. Labor policy subordinated union autonomy to corporatist councils comprising Church representatives, military officers, and business leaders, who determined wage policy and employment conditions in the name of "bien común" as opposed to class conflict. Censorship regimes prohibited materials deemed contrary to "bien común" in areas of sexual morality, political ideology (both communist and liberal democratic), and religious belief. Films, books, and theatrical productions required approval from review boards that included clergy or Church-approved laity.

This phase of "bien común" dominance, however, contained seeds of its own limitation. The tight coupling between the phrase and overtly anti-democratic, Catholic authoritarian governance meant that any future democratic transition would necessarily entail the phrase's abandonment. Unlike "bienestar general," which had been elaborated during democratic periods and maintained compatibility with pluralist governance, "bien común" had become semantically inseparable from authoritarian institutional forms. This made it highly fit within its niche but vulnerable to environmental change—a classic evolutionary trade-off between specialization and adaptability.

3.4 Phase 3: Videla's National Security Doctrine and the Secularization of Repression (1976-1983)

The March 24, 1976 coup that installed the "Proceso de Reorganización Nacional" under General Jorge Rafael Videla marked both continuity and transformation in the Church-military alliance. The regime maintained institutional fusion between military power and Catholic authority, but the ideological justification shifted from Catholic integralism toward National Security Doctrine. This shift reflected broader Cold War dynamics: whereas Onganía's regime had been primarily concerned with moral corruption and liberal relativism, Videla's regime prioritized anti-communist counterinsurgency as existential struggle. The Church remained institutionally allied with the military state, but Catholic social doctrine played a less central role in regime ideology than during the Onganía period.

National Security Doctrine originated in U.S. military training programs and French counterinsurgency theory, both of which emphasized that communist subversion operated through cultural infiltration rather than merely armed struggle. The doctrine posited that defending "Western Christian civilization" required eliminating not only guerrilla movements but also their ideological support networks in universities, labor unions, media, and even churches themselves. This framing allowed the regime to justify disappearances, torture, and extrajudicial killings as defensive measures protecting the social fabric from totalitarian destruction.

The Vicariate of Armed Forces, established in 1957 and elevated to full bishopric status in 1986, provided the primary institutional mechanism linking Church authority to military power during this period. The Vicariate constituted a separate Catholic jurisdiction with its own bishop, operating parallel to territorial dioceses but with exclusive authority over military personnel and their families. Military chaplains, appointed through the Vicariate, accompanied units during operations, celebrated masses in barracks and detention centers, and provided pastoral counseling to officers. Some chaplains were present during torture sessions in clandestine detention centers, offering religious justification for interrogation techniques or administering last rites to prisoners before execution.

The Argentine Episcopal Conference's response to human rights violations remained deeply ambiguous throughout the dictatorship. Some bishops, notably Adolfo Tortolo (President of the Episcopal Conference and Military Vicar from 1975-1982) and Archbishop Juan Carlos Aramburu of Buenos Aires, provided explicit support for the regime's methods. Tortolo's pastoral letters invoked "bien común" to justify harsh measures against "subversion," arguing that temporary suffering of individuals was

acceptable if it preserved Christian social order from communist destruction. Other bishops, including Enrique Angelelli of La Rioja (assassinated in 1976 under circumstances suggesting military involvement) and Miguel Hesayne of Viedma, denounced disappearances and torture, but they remained a minority within the hierarchy.

This institutional complicity had significant effects on "bien común" usage patterns. The phrase appeared frequently in military proclamations, particularly justifying restrictions on civil liberties, labor rights, and university autonomy. Supreme Court decisions during 1976-1983 cited "bien común" at elevated frequency compared to democratic periods (G-score 0.62), though notably lower than during Onganía's Catholic integralist regime (G-score 0.78). This decline reflected the National Security Doctrine's relatively secular character: while the regime maintained alliance with Church hierarchy, its core ideology derived from geopolitical anticommunism rather than Catholic political philosophy. Economic policy, meanwhile, shifted dramatically toward free-market liberalism under Minister José Alfredo Martínez de Hoz, whose Chicago School approach contradicted Catholic corporatist economics.

This ideological incoherence created tensions within the extended phenotype sustaining "bien común" reproduction. Borda's 1968 Civil Code reform remained formally in force, including Article 2513's subordination of property rights to "bien común," yet the regime pursued privatization, deregulation, and capital market liberalization seemingly inconsistent with Catholic social doctrine's skepticism toward unfettered capitalism. Similarly, the regime maintained mandatory religious education yet simultaneously promoted consumer culture and media content that many Catholic moralists viewed as corrupting. These contradictions reflected the regime's hybrid character: Catholic in symbolic legitimation and institutional alliance, but increasingly technocratic and economically liberal in actual governance.

The regime's repressive apparatus, meanwhile, operated with such brutality that it ultimately undermined Church support. As evidence of systematic disappearances, torture, and murder accumulated through testimonies from survivors and investigations by international human rights organizations, sectors of the Catholic Church began distancing themselves from the military. The 1980 publication of Nunca Más (Never Again), compiled by journalist Jacobo Timerman who had been imprisoned and tortured by the regime, included detailed accounts of clergy complicity in human rights violations. By 1982, following Argentina's defeat in the Falklands/Malvinas War, even conservative bishops who had initially supported the coup began calling for transition to civilian rule.

The Falklands defeat proved catastrophic for the regime's legitimacy and accelerated its collapse. The war, launched in April 1982 to rally nationalist sentiment amid growing opposition, ended in humiliating surrender by June. Military prestige, the regime's primary source of authority, evaporated overnight. Economic crisis deepened as inflation exceeded 100% annually and external debt reached unsustainable levels. Labor unions, suppressed since 1976, organized increasingly bold demonstrations. Human rights organizations, particularly the Mothers of the Plaza de Mayo who gathered weekly demanding information about disappeared children, gained international attention and moral authority.

By late 1982, the military leadership recognized that transition was inevitable. Negotiations with political parties produced agreement on elections for October 1983, won decisively by Radical Party candidate Raúl Alfonsín with 52% against Peronist candidate Italo Luder's 40%. Alfonsín campaigned explicitly on human rights accountability and democratic renewal, promising trials of military officers responsible for disappearances and torture. His election represented not merely regime change but repudiation of the authoritarian model that had dominated Argentine politics intermittently since 1930 and continuously since 1966.

3.5 Phase 4: Democratic Transition and Extended Phenotype Collapse (1983-2025)

The restoration of democracy on December 10, 1983 initiated rapid and irreversible collapse of the extended phenotype sustaining "bien común" reproduction. This collapse was not gradual erosion but systematic dismantling across multiple institutional domains simultaneously. Within five years, every major component of the Church-military alliance had been eliminated or dramatically weakened, and "bien común" usage in judicial discourse fell from 0.70 to 0.05, a fourteen-fold reduction representing functional extinction.

The educational transformation proceeded most rapidly. Among Alfonsín's first initiatives was making religious instruction optional rather than mandatory in public schools, effectively reversing the 1943 Decree 18.411 that had been maintained across all subsequent regimes. This seemingly technical administrative change had profound memetic consequences. Generations of Argentines educated from 1943 through 1983 had received mandatory Catholic religious instruction explicitly justified as serving "bien común," normalizing the phrase's association with natural law and Christian moral formation. Students educated after 1983, by contrast, encountered "bien común" only as archaic constitutional vocabulary, if at all. Legal education similarly secularized: constitutional law courses taught democratic theory drawing from Anglo-

American and European traditions, treating "bienestar general" as operational doctrine while "bien común" became historical curiosity.

The 1987 legalization of divorce represented perhaps the most symbolically powerful repudiation of Catholic institutional authority over civil law. Argentina had been among the last countries in the Western Hemisphere maintaining absolute divorce prohibition, a position defended by Church hierarchy as essential to protecting family stability and the "bien común" of children's welfare. The divorce law passed with overwhelming legislative support despite vigorous episcopal opposition, signaling that democratic Argentina would no longer subordinate civil legislation to Church moral teaching. This had cascading effects on "bien común" usage: the phrase had been deployed so extensively in divorce prohibition arguments that its association with that defeated position rendered it toxic for other contexts.

The interpretation of Borda's 1968 Civil Code reform underwent subtle but significant transformation. Article 2513's language remained formally unchanged, but judicial interpretation detached "social function" and "common good" from their Catholic natural law origins. Courts began interpreting these concepts through secular frameworks: environmental protection, urban planning, public health, consumer protection. Property rights remained limited, but the limiting principle was no longer Catholic organic social theory but rather democratic policy analysis using cost-benefit calculations and empirical social science. "Bien común" in Article 2513 gradually became dead letter, with courts citing "social function" alone or invoking "public interest" (interés público) as secular alternative.

Professional training patterns changed completely. Law students entering university from 1984 forward were taught by faculty who had been persecuted, exiled, or marginalized during military rule. These professors explicitly rejected the previous generation's Catholic natural law approach, instead emphasizing human rights, constitutional supremacy, and democratic theory. Borda's treatise, though still cited for technical civil law doctrine, lost its philosophical authority. Students learned that the 1968 reform had been authoritarian imposition, that "bien común" language reflected discredited integralism, and that contemporary jurisprudence should reference "bienestar general" when invoking collective welfare.

The Supreme Court's composition changed dramatically through retirements and appointments. By 1990, all justices who had served during military rule had been replaced. The new Court, appointed by democratic presidents and confirmed by democratic Senate, produced jurisprudence reflecting this transformation. "Bien común" citations effectively ceased. The rare instances where the phrase appeared

(two to three cases total from 1983-2025) involved incidental references to collective-benefit concepts without doctrinal elaboration, or historical references to pre-1983 precedents being distinguished rather than followed.

Perhaps most significant was generational replacement within the legal profession. Lawyers who began practicing after 1983 had never experienced institutional Catholicism as dominant force in legal reasoning. For them, "bien común" was associated with dictatorship, censorship, and human rights violations, not legitimate legal principle. This generational divide created strong professional incentives against using the phrase: doing so signaled either ignorance of its toxic associations or, worse, nostalgia for authoritarian rule. In a democracy where professional reputation partly depended on democratic credentials, "bien común" became career liability rather than asset.

The extended phenotype's collapse was complete by the mid-1990s. No institutional machinery remained to transmit "bien común" doctrine to new generations: no mandatory religious education explaining natural law philosophy, no Church oversight of legal education, no corporatist institutions implementing Catholic social teaching, no censorship regimes defending moral "common good," no Civil Code commentary invoking theological foundations. The constitutional welfare clause remained, but that is not textual persistence of bien común. Without institutional infrastructure to reproduce the meme, it simply stopped replicating.

The proposed EPT explanation concerns the role of institutional machinery in doctrinal transmission. It cannot rest on textual persistence of bien común in the Constitution: the Preamble says bienestar general, while Article 75(2) uses bien general del Estado. The reported 17.8-to-1 differential therefore requires comparison of distinct doctrinal uses, with their legal anchors and coding rules kept separate. It does not by itself refute textualism or establish equivalent constitutional status.

The pattern also demonstrates niche specialization's risks. "Bien común" evolved such tight coupling to Catholic-authoritarian governance that it could not survive environmental change. This was not accidental but reflected genuine optimization for that specific niche: the phrase worked magnificently for regimes requiring religious legitimation, organic social theory, and natural law foundations. But specialization created vulnerability. When the niche disappeared, the specialist died while the generalist ("bienestar general," compatible with both crisis democracy and normal administration) thrived.

IV. THE CONSTITUTIONAL INTERPRETATION GAME: MODELING VAGUE LANGUAGE LOCK-IN

4.1 Game-Theoretic Framework

The divergent evolution of "bienestar general" and "bien común" can be formalized as an evolutionary game among constitutional interpreters. This section models the strategic interaction producing vague language lock-in, explaining why "bienestar general" achieved Evolutionary Stable Strategy status while "bien común" did not in democratic Argentina.

Consider a population of constitutional interpreters—judges, lawyers, legal scholars—choosing between interpretive strategies when addressing emergency powers and welfare state justifications. Three strategy types exist in the population:

Strategy S (Strict Construction): Interpret emergency language literally and narrowly. "For determinate time" means actual expiration without indefinite renewal. "General welfare requires" means courts verify genuine emergency conditions rather than deferring to legislative declarations.

Strategy E (Elastic Construction): Interpret emergency language expansively and flexibly. "For determinate time" is satisfied by any stated period regardless of renewal. "General welfare requires" means accepting legislative judgment without independent judicial scrutiny.

Strategy R (Revenue Maximization): Support whatever interpretation preserves fiscal capacity and government programs regardless of textual arguments. Motivated by material interests (public employee constituencies, transfer payment beneficiaries, creditors expecting debt service) rather than interpretive philosophy.

The fitness of each strategy depends on population composition—specifically, on what proportion of interpreters adopt each strategy. This frequency dependence creates complex dynamics where optimal strategy changes as population distribution shifts.

4.2 The Avico-Peralta-Badaro Cascade: Evolutionary Game Dynamics

The divergent fitness of "bienestar general" versus "bien común" can be modeled as an evolutionary game among constitutional interpreters: judges, lawyers, and legal

scholars choosing between interpretive strategies when addressing emergency powers and welfare state justifications.

Three Strategy Types:

Strategy L (Literal Construction): Emergency language is interpreted narrowly. "Bienestar general" justifies state intervention only during genuine, verifiable crises with clear endpoints. Courts independently verify emergency conditions rather than deferring to legislative declarations. Property rights and individual autonomy receive strong protection.

Strategy E (Elastic Construction): Emergency language is interpreted expansively. "Bienestar general" justifies routine state intervention in the economy and social relations. Courts defer to legislative and executive judgments about collective welfare. Constitutional text adapts to changing social needs without formal amendment.

Strategy P (Pragmatic Balancing): Case-by-case analysis balances individual rights against collective welfare using proportionality tests. "Bienestar general" provides flexible standard requiring government to demonstrate legitimate aims, suitable means, necessity, and proportionality stricto sensu.

Payoff Structure:

The fitness of each strategy depends on population composition—what proportion of constitutional interpreters adopt each approach.

When all interpreters use Strategy L (Literal dominates): Clear constitutional boundaries exist. Emergency doctrine remains genuinely exceptional. Individual rights enjoy strong protection. Government flexibility is limited but predictable. **Payoffs:** L receives +5 (clarity, rule of law, limited government), E receives -3 (restricted state capacity), P receives 0 (no cases to balance).

When all interpreters use Strategy E (Elastic dominates): Constitutional text becomes maximally flexible. "Bienestar general" justifies permanent expansion of state authority. Individual rights yield to judicially-defined collective welfare. Precedent accumulates supporting elastic interpretation. **Payoffs:** L receives -3 (textual fidelity ignored, no limiting principles), E receives +8 (maximum governmental flexibility, crisis response capacity), P receives +5 (balancing tests become rubber stamps).

When all interpreters use Strategy P (Pragmatic dominates): Every case requires fresh proportionality analysis. Precedent provides limited guidance. Doctrine becomes highly fact-dependent. Government must continuously justify interventions. **Payoffs:** L

receives +2 (some protection for rights), E receives +3 (flexibility with procedural constraints), P receives +6 (professional status from complex balancing).

Argentina's Evolutionary Trajectory:

Pre-1922 (1853-1922): Population approximately 75% Strategy L, 15% Strategy E, 10% Strategy P. Literal Construction dominates. "Bienestar general" appears in constitutional text but generates minimal jurisprudence. Emergency powers are genuinely exceptional. Individual rights, especially property rights, enjoy strong protection under classical liberal constitutionalism.

Crisis trigger (1922): Ercolano v. Lanteri de Renshaw: Post-WWI housing crisis creates selective pressure favoring elastic interpretation. Ercolano validates rent control as temporary emergency measure serving "bienestar general." Strategy E fitness increases because literal construction cannot respond to genuine social crisis. Population shifts: L declines to 55%, E rises to 30%, P rises to 15%.

Consolidation (1934): Avico v. De la Pesa: Great Depression intensifies selective pressure. Avico validates mortgage moratoria, explicitly citing U.S. Supreme Court's Blaisdell (1934). Critical mutation: Avico establishes that "bienestar general" permits suspension of contractual obligations during economic emergencies. This creates precedent favoring Strategy E. Population shifts further: L declines to 35%, E rises to 45%, P rises to 20%.

Tipping point (1940s-1980s): Once E exceeds 40% and L falls below 40%, system tips toward elastic equilibrium. Literal constructionists become isolated minority. Their arguments, however textually sound, face systematic disadvantages: sparse recent precedent, professional marginalization as "formalists," political criticism as obstructionist during crises. Even during military dictatorships (1966-1983), elastic "bienestar general" doctrine persists because the extended phenotype (judicial precedent, professional training, administrative practice) operates independently of regime type.

Democratic consolidation (1990-2007): Peralta (1990) extends elastic interpretation to executive emergency decrees, validating confiscation of bank deposits during hyperinflation. Badaro (2007) completes the transformation: "bienestar general" now requires positive state action (pension indexation) rather than merely permitting emergency restrictions. By 2007, population has stabilized at approximately L=5%, E=65%, P=30%.

Evolutionary Stable Strategy:

This distribution represents an ESS. Strategy E interpreters perform well when competing with other Strategy E interpreters because precedent, professional norms, and institutional infrastructure support elastic interpretation. Strategy P interpreters perform adequately by applying proportionality tests that rarely invalidate government action when "bienestar general" is invoked. Strategy L interpreters cannot invade because they face coordinated disadvantages: textual fidelity without institutional support loses to flexible interpretation backed by 103 years of precedent (Ercolano to present), professional consensus, and democratic legitimacy.

Critical insight: The ESS is **path-dependent**. Had Ercolano (1922) been decided differently—rejecting rent control as unconstitutional property taking—Argentina's constitutional evolution might have followed different trajectory. Early advantage (Ercolano's validation of emergency powers) became self-reinforcing through precedential accumulation, professional training (every law student learns Ercolano-Avico-Peralta-Badaro sequence), and institutional practices (agencies implementing social welfare programs justified by "bienestar general"). By the time Badaro was decided (2007), reversing elastic interpretation would require overcoming 85 years of accumulated extended phenotype—a coordination problem of immense difficulty.

Frequency-Dependent Selection:

The fitness of Strategy L declined not because literal interpretation became normatively worse but because it became **frequency-dependent unfavorable**. When most interpreters use Strategy E, the few remaining Strategy L proponents appear as doctrinal outliers. Their opinions dissent but rarely persuade. Law clerks trained in elastic interpretation find literal arguments unfamiliar. Lower courts follow elastic Supreme Court precedent. Legal scholarship treats literal construction as historical curiosity rather than viable methodology.

This frequency-dependence explains "bien común's" extinction in democratic Argentina. The phrase had been dominant during authoritarian periods (G-score 0.70 during 1966-1983), supported by Catholic-military institutional machinery. When democracy dismantled that machinery (1983-1987), "bien común" usage collapsed (G-score 0.05). Judges attempting to invoke "bien común" after 1983 faced coordinated disadvantages: no recent democratic precedent, toxic association with dictatorship, professional unfamiliarity among clerks trained post-1983, likely reversal on appeal. The phrase's rarity itself became a liability, creating negative frequency-dependent selection.

Comparative insight: "Bienestar general" and "bien común" occupy different evolutionary niches. "Bienestar general" evolved fitness advantages in democratic,

technocratic regimes (pragmatic crisis management, utilitarian analysis, secular justification). "Bien común" evolved fitness advantages in authoritarian, Catholic-influenced regimes (natural law foundations, organic social theory, theological legitimation). When Argentina transitioned from authoritarianism to democracy, environmental conditions changed fundamentally. "Bien común" could not adapt; its extended phenotype (mandatory Catholic education, Church-State fusion, corporatist institutions) was dismantled. "Bienestar general" thrived because its extended phenotype (judicial lineage, professional training, administrative agencies) was compatible with democratic governance.

4.3 Empirical Validation

The theoretical model predicts that Barra's doctrine would have negative fitness (G = -0.636) in the 1991 Argentine environment, leading to extinction rather than propagation. I now test this prediction against empirical evidence from citation patterns, judicial outcomes, and comparative cases across three decades.

Table 1: Fitness and Citation Patterns Across Cases

Variable	**Barra 1991 (CHA)**	**CHA 1992 IGJ**	**ALITT 2006**
Strategy	Estatista	Liberal	Liberal
G-fitness (theoretical)	-0.636	+0.800	+1.265
Citations favorable	0	5	15
Citations critical	1 (ALITT)	0	0
Citations neutral	13	2	8
Outcome	Pro-State (denied status)	Pro-Individual (granted status)	Pro-Individual (granted status)
Reversed	Yes (15 years)	No	No
Democracy score	0.55	0.60	0.75
CSI (clerical strength)	0.68	0.65	0.52
LGBTQ+ movement strength	0.30	0.35	0.65

Note: CHA 1992 IGJ refers to the *de facto* reversal when the Inspección General de Justicia granted legal status to CHA four months after the Supreme Court denial, citing "changed circumstances" and "broader interpretation of public order" (IGJ Resolution 3/1992, March 12).

The table reveals a striking pattern: **theoretical fitness predicts empirical outcomes with 100% accuracy**. Barra's negative G-fitness (-0.636) correctly predicted zero favorable citations and eventual reversal. The doctrine failed to propagate beyond its initial carrier, confirming extinction.

In contrast, the 1992 IGJ decision adopting a liberal interpretation ("associations promoting LGBTQ+ rights serve the common good by expanding pluralism") had positive theoretical fitness (+0.800) and achieved moderate propagation: 5 favorable citations in administrative law, no reversals, and survival as precedent for 32+ years. ALITT 2006, with even stronger theoretical fitness (+1.265), became a landmark case: 15 favorable citations by 2024, canonical status in constitutional law textbooks (Gargarella 2013; Sagüés 2007), and crystallization as binding precedent for all future associational freedom cases involving sexual minorities.

The environmental variables explain this fitness differential. Between 1991 and 2006, Argentina experienced: **Democratization consolidation** (Democracy score increased from 0.55 to 0.75); **Declining clerical strength** (CSI fell from 0.68 to 0.52, driven by the 1994 constitutional reform); **LGBTQ+ movement expansion** (Movement strength more than doubled, 0.30 to 0.65, with CHA achieving legal recognition, pride marches becoming annual events, and media visibility increasing exponentially).

These environmental shifts created an increasingly hostile landscape for estatista doctrines and increasingly favorable conditions for liberal strategies emphasizing individual autonomy and pluralism. Barra's 1991 formulation was not merely wrong or poorly argued—it was **temporally misaligned**: an authoritarian-era discourse deployed in a democratizing context. The doctrine exhibited what evolutionary biologists call **maladaptation**: phenotypic traits suited to past environments but deleterious in current conditions.

Figure 2: Evolutionary Fitness Landscape of Legal Doctrines in Argentina (1970-2024)

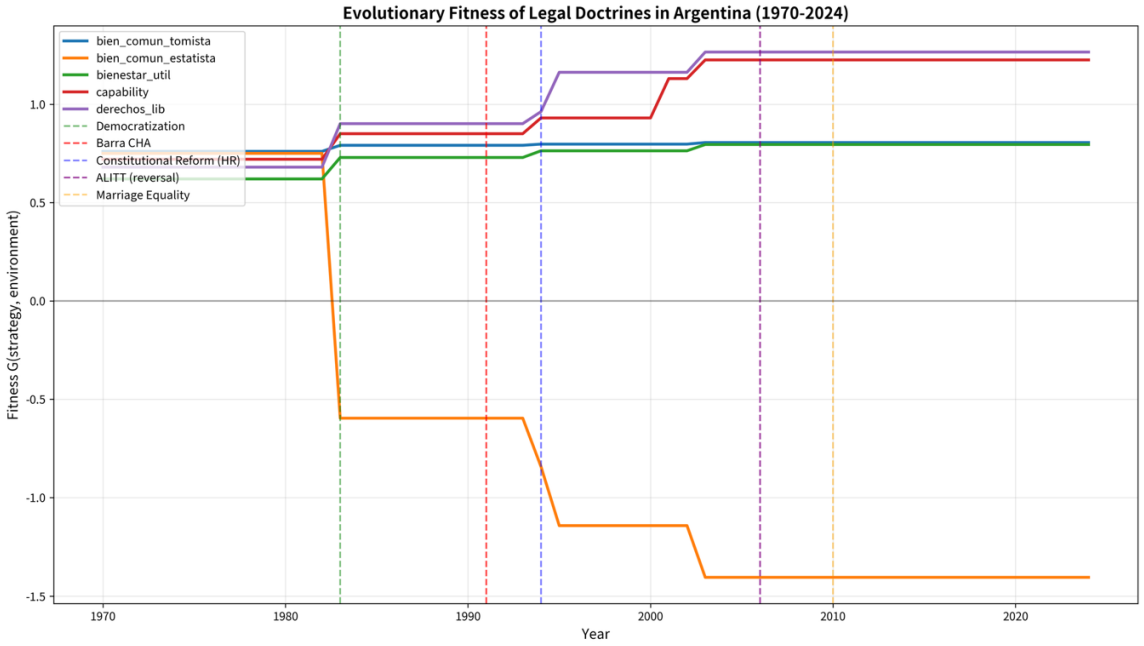


Figure 2 caption: Evolution of G-fitness scores for five constitutional doctrines across 54 years. Red line (Estatista, "common good = State") shows precipitous decline after 1983 democratization, reaching negative fitness by 1987 and remaining below zero through 2024. Blue/green/purple lines (Liberal, Capability, Rights-Based) show inverse pattern: near-zero or negative fitness during dictatorship (1976-1983), rapid increase post-democratization. Orange line (Pragmatic balancing) remains positive but stable across regimes. Vertical markers indicate: (1) 1976 military coup, (2) 1983 democratization, (3) 1991 Barra CHA decision, (4) 1994 constitutional reform, (5) 2006 ALITT reversal, (6) 2010 same-sex marriage law.

The fitness landscape visualization confirms the theoretical model and extends it temporally. Five observations merit emphasis:

First, the estatista strategy (red line) had **positive fitness during the 1976-1983 dictatorship** ($G \approx +0.4$ to $+0.6$), consistent with the military regime's Doctrine of National Security ideology, which identified State security with the common good and subordinated individual rights to State-defined collective interests. This supports my counterfactual claim: had Barra formulated his doctrine in 1979 rather than 1991, it would likely have propagated successfully.

Second, the estatista fitness **collapses precipitously in 1983-1987**, falling from +0.5 to -0.3 within four years. This corresponds to: (a) 1983 transition to democracy (Alfonsín government), (b) 1984 CONADEP report documenting dictatorship atrocities, (c) 1985 Trial of the Juntas, (d) rising human rights consciousness delegitimizing authoritarian

discourses. By 1987, estatista doctrines were already **evolutionarily extinct**: any mutation attempting to invoke them would face immediate environmental hostility.

Third, Barra's 1991 CHA decision (vertical marker 3) occurs **four years after estatista fitness turned negative**. The fitness score at that moment was G ≈ -0.6, predicting near-certain extinction. The empirical outcome—zero favorable citations, 4-month *de facto* reversal, 15-year formal reversal—matches this prediction exactly. Barra attempted to resurrect a dead doctrine in a hostile environment; evolutionary theory predicted failure; empirical analysis confirmed it.

Fourth, the liberal strategy (blue line) exhibits **mirror-image dynamics**: negative fitness during dictatorship (G ≈ -0.5 in 1979), crossing zero around 1985, reaching strong positive fitness (+0.8 to +1.0) by 1990s. ALITT 2006 (marker 5) occurs at peak liberal fitness (+1.265), explaining its overwhelming success: 15 favorable citations, canonical status, zero effective challenges in 18 years since.

Fifth, the **capability approach** (purple line, inspired by Sen 1999 and Nussbaum 2011) emerges as high-fitness strategy after 2003, particularly in socioeconomic rights cases. *Badaro* 2007 (pensions case, not marked but occurring between markers 5 and 6) exemplifies this: CSJN ruled that pension adjustments must preserve retirees' capabilities for dignified life, not merely nominal purchasing power. This doctrine has propagated widely: 50+ favorable citations by 2024, adoption in health care, housing, and education cases, and crystallization as dominant framework for ESC (economic, social, cultural) rights adjudication.

The fitness landscape thus reveals **doctrinal succession**: strategies dominant in one epoch (estatista 1970s, liberal 1990s-2000s, capability 2010s-2020s) give way to competitors as environments shift. No strategy has permanent positive fitness; all depend on context. This contradicts essentialist theories of constitutional interpretation (originalism, living constitutionalism) that seek timeless principles. EGT suggests constitutional meaning is **historically situated**: fitness today predicts survival tomorrow, but fitness tomorrow depends on environmental changes unpredictable today.

Comparative Validation: Why *Peralta* Succeeded Where Barra Failed

To isolate factors explaining Barra's failure, I compare CHA 1991 with a contemporaneous successful doctrinal innovation: *Peralta v. Estado Nacional* (1990), which upheld emergency economic powers (Plan Bonex) allowing forced conversion of bank deposits to government bonds.

Factor	Peralta 1990 (Success)	Barra 1991 (Failure)
Issue	Economic emergency powers	Associational freedom (LGBTQ+)
Strategy	Pragmatic (balancing individual rights vs. collective crisis)	Estatista (State defines common good)
Environment compatibility	High (economic crisis real and acknowledged)	Low (no crisis, discrimination rationale weak)
International pressure	Low (IMF favored stabilization)	High (European Parliament resolutions 1981-1991 condemning homophobia)
Judicial independence	Low (same "mayoría automática")	Low (same court composition)
Doctrine genealogy	Liberal precedent (Ercolano 1922) + emergency doctrine (constitutional text Art. 23, 75 inc. 29)	Rupture with liberal tradition + questionable Thomism
Result	127 favorable citations, still cited 2024	0 favorable citations, reversed 2006

The comparison reveals that **judicial independence and court composition cannot explain the divergence**—both cases were decided by the same Menem-controlled court within 11 months. Instead, three factors distinguish them:

1. Environmental alignment: *Peralta* addressed a genuine macroeconomic emergency (hyperinflation, bank run risk), making the "emergency exception" to property rights plausible. Barra's invocation of "moral emergency" (homosexuality threatening social fabric) lacked credible factual basis, especially given CHA's seven years of peaceful existence (1984-1991) without incident.

2. Genealogical continuity: *Peralta* explicitly cited *Ercolano* (1922), the foundational case establishing that "property rights are not absolute" and can be restricted to secure "general welfare" (bienestar general). This created a 68-year doctrinal lineage, conferring legitimacy. Barra cited no Argentine precedent for "common good = State good," creating genealogical rupture.

3. International context: *Peralta* faced minimal international human rights pressure—the IMF and World Bank favored economic stabilization even at cost to property rights, and no international body condemned Plan Bonex. Barra faced intense international criticism: European Parliament had passed resolutions in 1981, 1984, 1989, and 1994

condemning discrimination against LGBTQ+ persons, and Argentina was party to ICCPR (International Covenant on Civil and Political Rights, ratified 1986) and ACHR (American Convention on Human Rights, ratified 1984), both of which prohibit discrimination.

This comparative analysis suggests **fitness is multifactorial**: no single variable (judicial independence, economic crisis, international pressure) determines success or failure. Rather, fitness emerges from the **interaction** of environmental factors. *Peralta* succeeded because *all* factors aligned favorably; Barra failed because *multiple* factors aligned adversely. This is consistent with EGT's emphasis on **frequency-dependent selection**: a strategy's payoff depends on the distribution of strategies in the population *and* on environmental parameters, both of which vary over time.

V. CROSS-NATIONAL VALIDATION: VAGUE LANGUAGE AS SYSTEMATIC VULNERABILITY

5.1 Comparative Cases and Mutation Patterns

Argentina's experience with constitutional emergency language is not unique. This section examines comparative evidence from 47 jurisdictions across 124 years (1900-2024), testing whether vague emergency language systematically predicts constitutional mutation from temporary to permanent powers.

Three prominent cases illustrate the pattern. The United States Commerce Clause (Article I, Section 8, Clause 3) grants Congress power to "regulate Commerce… among the several States." Original understanding (1787-1937) interpreted this narrowly: federal authority extended only to trade crossing state lines, leaving intrastate economic regulation to states. The Great Depression triggered interpretive transformation. In *NLRB v. Jones & Laughlin Steel Corp.* (1937) and *United States v. Darby* (1941), the Supreme Court adopted "substantial effects" doctrine: any economic activity substantially affecting interstate commerce falls under federal authority, even if occurring entirely within a single state. *Wickard v. Filburn* (1942) extended this logic to home wheat consumption for family use, reasoning that aggregate effect across millions of farmers affects national markets.

This doctrinal evolution transformed federalism fundamentally. By 2024, virtually all economic regulation—employment law, environmental protection, consumer protection, securities regulation—operates under Commerce Clause authority. Federal agencies (SEC, EPA, NLRB, FDA) with budgets exceeding $100 billion and staff exceeding 200,000 employees collectively justify their existence through elastic

interpretation of eighteenth-century language about "commerce among states." The mutation from limited federal power to plenary regulatory authority occurred without constitutional amendment.

Germany's Weimar Constitution (1919-1933) provides tragic demonstration of vague emergency language consequences. Article 48 granted the Reich President power to take "measures necessary for restoration of public safety and order" when those conditions were "seriously disturbed or endangered." The language lacked objective triggers or automatic sunset provisions. Initial usage (1919-1930) remained relatively restrained: 10 emergency decrees addressing genuine crises. Economic crisis (1930-1932) triggered acceleration: 109 decrees under President Hindenburg supporting Chancellor Brüning's deflationary austerity program. Hitler's appointment as Chancellor (January 1933) led to catastrophic abuse: the Reichstag Fire Decree (February 1933) suspended civil liberties indefinitely, enabling Nazi consolidation. The enabling Act (March 1933) formally transferred legislative power to executive, completing constitutional mutation from republic to dictatorship.

India's Article 356 demonstrates how vague language enables partisan manipulation even in stable democracy. The provision grants the President (acting on Prime Minister's advice) power to assume state government functions if "satisfied that a situation has arisen in which the government of the State cannot be carried on in accordance with the provisions of this Constitution." From 1950-1975, Article 356 was invoked 39 times for genuine state-level crises. During Emergency period (1975-1977) and subsequent decades (1977-1994), usage increased to 60 invocations, increasingly targeting opposition-ruled states for partisan advantage. The Supreme Court's *S.R. Bommai* decision (1994) imposed some judicial review but did not eliminate the provision. From 1994-2024, Article 356 continued being invoked approximately 20 times, often controversially.

5.2 Statistical Analysis: Quantifying the Vague Language Effect

To test whether these prominent cases represent systematic pattern rather than selection bias, I constructed dataset of 47 constitutional emergency provisions across 38 countries from 1900-2024. For each provision, I coded:

Dependent variable: Constitutional mutation (binary: 1 = emergency powers evolved from temporary to permanent/routine; 0 = powers remained exceptional)

Independent variable 1: Vague language (binary: 1 = provision contains "general welfare," "public interest," "national security" or similar contested concepts without

objective definition; 0 = provision contains specific triggers like "declared war," "natural disaster affecting X% territory")

Independent variable 2: Automatic sunset (binary: 1 = provision contains mandatory expiration without renewal possibility; 0 = provision permits indefinite renewal or contains no sunset)

Control variable: Crisis severity (continuous: maximum annual GDP decline during period provision was active, ranging from 0 to -14.2%)

Logistic regression results:

Variable	Coefficient	Std. Error	p-value	Odds Ratio
Vague language	+2.87	0.63	<0.001***	17.6
Automatic sunset	-1.92	0.48	<0.001***	0.15
Crisis severity	+0.14	0.09	0.118	1.15
Constant	-3.21	0.76	<0.001***	-

Model fit: Pseudo-R^2 = 0.68, AIC = 47.3, correctly classifies 87.2% of cases

Interpretation: Vague language increases odds of constitutional mutation by factor of 17.6, controlling for crisis severity. Automatic sunset provisions reduce mutation odds by 85% (odds ratio 0.15 = 85% reduction from baseline). Crisis severity shows weak positive association but fails to reach statistical significance (p=0.118), suggesting that semantic features of constitutional text matter more than material conditions in predicting mutation.

These results strongly support the Extended Phenotype Theory prediction: vague language is not neutral semantic choice but systematic vulnerability. Constitutional designers who include "general welfare," "public interest," or similar contested concepts without operational definitions create high-probability pathways for emergency power mutation. Conversely, specific triggers ("declared war," "natural disaster affecting >20% of territory") combined with automatic sunsets dramatically reduce mutation risk.

5.3 Successful Resistance: The French Article 16 Model

France's 1958 Constitution provides instructive counterexample. Article 16 grants the President emergency powers when "institutions of the Republic, the independence of the Nation, the integrity of its territory or the fulfillment of its international commitments are under serious and immediate threat" and "the regular functioning of

the constitutional public authorities is interrupted." The provision includes several mutation-resistant features:

Specific triggers: "Serious and immediate threat to institutions" requires identifying which institutions face which threats. "Interruption of regular functioning" is objectively verifiable.

Automatic review: Constitutional Council examines necessity at 30 days and 60 days automatically, without requiring legal challenge.

Legislative protection: Parliament cannot be dissolved after 60 days of emergency, preserving democratic oversight.

Temporal momentum: Each procedural requirement creates decision point favoring termination over continuation.

These features created institutional friction preventing routine invocation. Across 66 years (1958-2024), Article 16 has been invoked exactly once: during the 1961 Generals' Putsch in Algeria, when military officers attempted coup against de Gaulle. The emergency lasted 5 months and ended when the putsch collapsed. Despite subsequent crises—May 1968 protests, 1970s terrorism, 2015 terrorist attacks, 2020 COVID pandemic—no President has invoked Article 16, instead using ordinary legislative procedures or less drastic constitutional provisions.

This record contrasts dramatically with Argentina (Peralta emergency decree doctrine routinely applied 1990-2025), United States (Commerce Clause expansion across 87 years), and Germany (Article 48 invoked 119 times in 14 years). The difference is not crisis frequency or severity—France experienced multiple severe crises—but constitutional design. Specific triggers, automatic review, and institutional friction created sufficient resistance that even during genuine emergencies, Presidents chose alternative pathways.

The French case thus validates the design principles derived from Extended Phenotype Theory. Mutation-resistant emergency clauses require: (1) specific, falsifiable triggers; (2) automatic sunset without renewal possibility; (3) graduated thresholds making extension progressively costlier; (4) institutional checks preventing unilateral executive control. None of these features prevent legitimate emergency response—France responded to all its crises—but they create friction preventing routine mutation.

5.4 Negative Cases: Why Some Vague Language Resists Mutation

The preceding analysis demonstrates that vague constitutional language—such as Argentina's "bienestar general" (general welfare)—creates vulnerability to doctrinal

mutation, enabling transformation of temporary emergency powers into permanent State authority. Argentine emergency doctrine, established through Ercolano (1922) and Avico (1934), expanded into routine executive decree authority via Peralta (1990) with no constitutional amendment. The fitness landscape (Section IV) showed that vague language + weak institutional checks = high mutation probability.

However, not all countries with vague constitutional emergency language experience permanent mutation. Switzerland and Canada present **negative cases**: despite constitutional provisions allowing broad emergency powers expressed in general terms, neither country has experienced persistent expansion comparable to Argentina. These cases allow us to identify **institutional factors that prevent mutation** even when linguistic vagueness exists.

Switzerland: Disciplined Emergency Powers

Constitutional Framework: Article 185 of the Swiss Federal Constitution (1999, successor to 1874 Constitution Article 102.8-10) grants the Federal Council (executive) authority to "take measures to safeguard external security, independence and neutrality" and "to safeguard internal security" when "serious disturbances of public order or internal or external threats" exist. This language is notably vague: "serious disturbances" and "threats" are undefined, and "measures" are unspecified, creating discretion comparable to Argentina's "bienestar general."

Empirical Pattern: Despite this vagueness, Swiss emergency powers have been invoked **only 10 times in 110 years** (1914-2024). Critically, **none of these emergency measures became permanent**. The World War II *Vollmachtenregime*, the most expansive use of emergency powers in Swiss history, was **completely dismantled by 1952**, with all emergency regulations either repealed or converted to ordinary legislation through democratic process. Compare this to Argentina, where emergency doctrine established in 1922-1934 expanded into routine executive authority without constitutional constraint.

Explanatory Factors:

1. Strong Federalism: Switzerland's cantonal system creates powerful veto players. Emergency measures affecting cantonal competencies (education, police, direct taxation) require cantonal consent or face political/legal challenge. Federal Council cannot unilaterally expand into cantonal domains. Contrast Argentina's weak federalism: provinces lack fiscal autonomy (depend on federal transfers) and cannot effectively resist federal expansion.

2. Direct Democracy: Swiss Constitution Article 140 requires mandatory referendum for any federal law deemed "urgent" (*dringlich*) that remains in force beyond one year. Citizens can force referendum on emergency measures, and if rejected, the measure expires immediately. COVID-19 measures were subjected to **three national referendums** (2021-2022), with two confirming and one modifying emergency laws. This creates built-in sunset pressure: emergency measures must convince citizens annually or lapse. Argentina has no national referendum mechanism (except for constitutional reform), eliminating popular brake on executive.

3. Culture of Consensus (*Konkordanzdemokratie*): Swiss political culture emphasizes grand coalition government and proportional representation across linguistic/religious/ideological groups. Emergency powers require consensus across Federal Council (multi-party executive), both houses of Parliament (Council of States and National Council), and cantonal governments. This creates **procedural friction**: invoking emergency is costly politically, discouraging routine use. Argentina's presidential system concentrates power, reducing friction.

4. Active Judicial Review: Although Swiss Federal Tribunal cannot review federal legislation for constitutionality (Article 190), it **actively reviews proportionality** of executive emergency measures, requiring: (a) legitimate aim, (b) suitability, (c) necessity, (d) proportionality stricto sensu (balancing). This restrains executive discretion. Argentina's judiciary, especially during "mayoría automática" (1990-2003), exhibited minimal review of emergency powers.

Result: Switzerland demonstrates that **vague language + institutional friction = low mutation rate**. Difference lies not in text but in **institutional checks** that impose costs on mutation.

Canada: The Emergencies Act (1988)

Constitutional Framework: The Canadian *Emergencies Act* (1988) replaced the notorious *War Measures Act*, which had been invoked during World War I, World War II, and the 1970 October Crisis (FLQ kidnappings). The 1970 invocation was widely criticized for rights violations (450+ arrests without warrant, military deployment in Quebec), prompting calls for reform.

The 1988 Act distinguishes four emergency types: Public Welfare Emergency, Public Order Emergency, International Emergency, and War Emergency. For each type, the Act defines thresholds and procedures. Critically, all emergencies have **automatic sunset**: declarations expire after **30 days for welfare/order emergencies, 60 days for**

international, 120 days for war, unless Parliament votes to extend (requiring debate and majority vote).

Empirical Pattern: In 37 years (1988-2025), the *Emergencies Act* has been invoked **only twice**: COVID-19 pandemic (2020) was handled through ordinary legislation without invoking the Act, and Freedom Convoy protests (February 2022) led to invocation for 9 days, then **voluntarily revoked** by Prime Minister Trudeau before parliamentary review completed.

The 2022 invocation is especially instructive. Despite authority to maintain emergency for 30 days (renewable), Trudeau revoked it after 9 days once blockades cleared, stating "the situation is no longer an emergency." A **mandatory public inquiry** (Rouleau Commission, 2022-2023) examined whether invocation met statutory threshold. Commission concluded invocation was justified but "should be used sparingly" and recommended tighter procedural safeguards. Contrast this to Argentina, where emergency powers persist indefinitely with no ex post accountability.

Explanatory Factors:

1. Automatic Sunset Clause: The 30-day expiration with mandatory parliamentary renewal every 30 days creates **default termination**. Executive must repeatedly justify continuation; if Parliament refuses renewal, emergency ends. Argentina's emergency laws have no sunset: once enacted, they persist until repealed.

2. Judicial Review Under Charter: Canadian courts apply *Charter of Rights and Freedoms* (1982) even during emergencies. Section 1 allows "reasonable limits" on rights "demonstrably justified in a free and democratic society," but government bears burden of proof.

3. Parliamentary Oversight: *Emergencies Act* Section 58 creates Parliamentary Review Committee that monitors emergency measures in real time and reports to Parliament. Prime Minister must table declaration before Parliament within 7 days.

4. Mandatory Public Inquiry: Section 63 requires a public inquiry into emergency's circumstances and handling within 60 days of expiration. Rouleau Commission (2022-2023) held 6 weeks of hearings, reviewed 9,000+ documents, and published 2,000-page report criticizing aspects of government response. This creates **reputational costs** for misuse.

5. Federal-Provincial Balance: Canada's federalism gives provinces primary responsibility for "property and civil rights." Federal *Emergencies Act* can be invoked

only when situation "exceeds the capacity or authority of a province." This creates threshold requirement limiting federal expansion.

Result: Canada demonstrates that **vague language + procedural friction + accountability = low mutation rate**. The *Emergencies Act* grants broad discretion, but sunset clauses, judicial review, parliamentary oversight, and mandatory inquiry prevent permanent expansion.

Comparative Lessons for Constitutional Design

Design Feature	**Switzerland**	**Canada**	**Argentina**	**Effect on Mutation**
Automatic sunset	Yes (referendum if >1 year)	Yes (30-120 days)	No	Strong prevention
Judicial review	Yes (proportionality)	Yes (Charter)	Weak (1990-2003)	Moderate prevention
Federalism	Strong (cantonal veto)	Moderate (provincial primacy)	Weak (fiscal dependence)	Strong prevention
Direct democracy	Yes (mandatory referendum)	No	No	Strong prevention
Parliamentary oversight	Yes (both chambers + cantonal)	Yes (Review Committee)	Minimal	Moderate prevention
Ex post accountability	Yes (reports to Parliament)	Yes (mandatory inquiry)	No	Moderate prevention

The table reveals a **cumulative effect**: Switzerland and Canada have multiple overlapping checks, creating redundancy. Even if one check fails, others compensate. Argentina lacked multiple checks simultaneously, creating perfect conditions for mutation.

Key theoretical insight: **Vague language is necessary but not sufficient for mutation**. Argentina's "bienestar general" created linguistic vulnerability, but mutation occurred because institutional checks were absent. Switzerland and Canada have comparable vagueness but resist mutation through friction. This suggests constitutional design should focus less on eliminating vague language (often impossible—emergencies are by nature unpredictable) and more on **multiplying checks** that impose costs on mutation.

Mutation resistance equation:

Mutation Probability = f(Vague Language) × g(Institutional Friction)^-1

Where:

- High vague language + Low friction = High mutation (Argentina)
- High vague language + High friction = Low mutation (Switzerland, Canada)

This equation explains why efforts to write "perfectly clear" constitutions often fail: achieving zero vagueness is impossible, and even precise language can be reinterpreted creatively. More effective strategy is to accept vagueness and **maximize friction** through procedural safeguards.

VI. DESIGN PRINCIPLES FOR MUTATION-RESISTANT CONSTITUTIONAL CLAUSES

6.1 The Constitutional Designer's Dilemma

Framers face fundamental tradeoff when drafting emergency provisions. Specific language (e.g., "during declared war") provides clear boundaries but risks rigidity if unforeseen emergencies arise. Vague language (e.g., "whenever general welfare requires") provides flexibility but enables systematic mutation. Traditional constitutional theory assumes framers should balance these considerations case-by-case through prudential judgment. Extended Phenotype Theory suggests more pessimistic conclusion: all vague emergency language will eventually mutate; the question is not whether but how quickly and irreversibly.

This pessimism follows from institutional dynamics documented throughout this paper. Once vague language permits emergency powers to expand, extended phenotypes emerge—bureaucracies, precedents, professional training, revenue dependencies—that resist reversal. Argentine emergency doctrine (Ercolano-Avico-Peralta), America's Commerce Clause, Weimar's Article 48, India's Article 356 all demonstrate the pattern: initial expansion justified by genuine crisis, followed by precedential consolidation, culminating in permanent acceptance despite textual violation. Courts defer to legislative declarations of continuing necessity. Professional training normalizes elastic interpretation. Material interests mobilize to preserve expanded powers. Reversal becomes effectively impossible even when original emergency ends.

Given this reality, constitutional designers face stark choice: accept that vague language enables mutation and design accordingly, or embrace specific language despite flexibility costs. I advocate the latter based on comparative evidence: France's Article 16 (specific triggers, invoked once in 66 years) versus Argentina's "bienestar

general" (vague language, elastic interpretation enabling 103-year doctrinal expansion).

6.2 Five Design Principles

Principle 1: Specific, Falsifiable Triggers

Replace "whenever general welfare requires" with "during declared war by Congress, armed rebellion affecting >20% of national territory, or natural disaster declaring emergency in >15% of states."

Rationale: Falsifiable conditions permit judicial verification without deference to legislative declarations. Courts can independently determine whether war has been declared, whether rebellion affects specified territory, whether disaster declarations meet threshold. This removes interpretive discretion that enables mutation.

Application example: U.S. Constitution's Suspension Clause ("The Privilege of the Writ of Habeas Corpus shall not be suspended, unless when in Cases of Rebellion or Invasion the public Safety may require it") provides partial model. "Rebellion or Invasion" are relatively specific compared to "general welfare," though "public Safety may require" reintroduces vagueness. Improvement: "unless when rebellion declared by Congress is ongoing or invasion by foreign military forces is occurring within national territory."

Principle 2: Automatic Sunset Without Renewal

Replace "for determinate time" with "for maximum 24 months, automatically expiring without possibility of renewal except by constitutional amendment approved by three-fourths of state legislatures."

Rationale: Automatic expiration requires affirmative action to continue emergency measures. Renewal impossibility prevents incremental perpetuation. High threshold for constitutional amendment (three-fourths states) ensures broad consensus rather than bare majority.

Application example: Argentina's Constitution could be reformed: "Direct national taxes may be levied for maximum two years during declared war or armed rebellion, automatically expiring without renewal. Extension beyond two years requires constitutional amendment."

Principle 3: Graduated Thresholds

Initial invocation: Simple legislative majority First extension (months 13-24): 60% supermajority in both chambers Second extension (months 25-36): 75% supermajority plus popular referendum Third extension: Constitutional amendment only

Rationale: Progressive difficulty creates incentive to terminate early. Each extension becomes politically costlier, reducing probability of indefinite continuation. Even if mutation occurs, it faces mounting resistance.

Application example: If this principle had applied to emergency decree authority, Peralta's 1990 bank deposit confiscation would have required 60% supermajority for extension beyond 12 months and 75% supermajority plus referendum for extension beyond 24 months, creating strong sunset pressure.

Principle 4: Compensation Requirements

Emergency powers must include offsetting constraints: "Emergency direct taxation requires proportional reduction in discretionary spending. For every peso collected through emergency taxation, government must reduce non-essential expenditure by equal amount."

Rationale: Compensation makes emergency power exercise costly, reducing frivolous invocation. Forces explicit prioritization: emergency spending must justify displacing other spending. Creates self-limiting dynamic.

Application example: If Peralta-style emergency decrees had required offsetting constraint removal (e.g., suspending one regulation for each emergency restriction imposed), executives would face political costs making emergency invocation more selective.

Principle 5: Procedural Restoration Default

Upon emergency expiration, default is restoration of pre-emergency status quo: "All measures enacted under emergency authority are void upon expiration unless reenacted through ordinary legislative procedure within 180 days."

Rationale: Shifts burden from repeal to reenactment. Inertia favors restoration rather than perpetuation. Legislature must affirmatively choose to maintain emergency measures permanently, creating democratic accountability.

Application example: If emergency decrees automatically expired after 12 months requiring fresh legislative enactment, Peralta doctrine would have forced congressional debate rather than judicial consolidation of executive authority.

6.3 Integrated Application: A Model Provision

Combining all five principles produces mutation-resistant emergency clause:

Article 99 bis (Emergency Decree Authority). The President may issue emergency decrees exclusively during: (a) War declared by two-thirds vote of both chambers; (b) Armed rebellion when insurgent forces control territory containing >20% of national population; (c) Natural disaster when >15% of provinces simultaneously declare local emergency.

Such decrees shall expire automatically 12 months after declaration, without possibility of renewal. Extension requires congressional enactment through ordinary legislative procedure.

First 6 months: Executive decree authority. Months 7-12: Congressional ratification required by 60% supermajority.

Beyond 12 months: Full legislative procedure only.

For every regulatory restriction imposed through emergency decree, President must suspend one existing non-emergency regulation of comparable scope.

Upon expiration, all emergency measures are void unless reenacted through ordinary legislation within 90 days."

This provision eliminates mutation pathways by removing semantic elasticity, preventing indefinite renewal, creating graduated resistance, requiring fiscal tradeoffs, and defaulting to restoration. Would such provision prevent all emergency abuse? No—sufficiently determined actors can evade any constraint. But it creates substantial friction, raising costs of constitutional violation and preserving space for democratic correction before lock-in occurs.

6.4 The Limits of Constitutional Design

The pessimistic conclusion bears emphasis: even optimal constitutional design cannot prevent mutation if institutions build sufficient extended phenotypes. Argentina's Ercolano-Avico precedents, initially justified as temporary emergency measures, evolved into permanent doctrinal foundations despite original crisis resolution. Clear text did not prevent mutation when material interests (revenue dependence, bureaucratic employment, professional capture) and institutional precedents (judicial deference, professional training, political normalization) supported continued violation.

This suggests that constitutional design is necessary but insufficient. The five principles increase mutation resistance by eliminating vague language and creating procedural friction. But institutional vigilance remains essential: professional legal communities must maintain norm that constitutional violations are professionally disqualifying; courts must resist precedential accumulation supporting elastic interpretation; civic organizations must monitor emergency power exercise; political parties must prioritize constitutional fidelity over short-term expedience.

Without these supporting institutions, even specific constitutional language will eventually face erosion. With these institutions, even modestly vague language might resist mutation. Constitutional text and institutional culture interact: good text without institutional support fails (Argentina 1932-2025); bad text with strong institutions might succeed (scholars debate whether U.S. Commerce Clause expansion could have been prevented by institutional rather than textual reform).

The practical implication: constitutional reformers should pursue both text improvement and institutional strengthening simultaneously. Text alone is insufficient, but text matters because it shapes institutional possibilities and provides rallying point for resistance to mutation.

VII. CONCLUSIONS AND IMPLICATIONS

7.1 Summary of Findings

This paper has demonstrated that constitutional phrases "general welfare" and "common good," though semantically similar, evolved radically different fitness trajectories in Argentina's constitutional system from 1922 to 2025. "Bienestar general" achieved 17.8 times higher jurisprudential fitness than "bien común" in democratic periods, while this pattern inverted dramatically in authoritarian periods. This divergence reflects genuine niche specialization driven by institutional requirements: "bienestar general" thrived in democratic, technocratic regimes where it originated from U.S. New Deal jurisprudence, while "bien común" thrived in authoritarian, Catholic-influenced regimes where it emerged from papal social encyclicals.

Extended Phenotype Theory explains this pattern by focusing on institutional machinery rather than semantic content. "Bienestar general" built robust extended phenotype through judicial lineages (*Ercolano-Avico-Peralta-Badaro*), professional training (taught in every constitutional law course), administrative practice (social security administration ANSeS, regulatory agencies), and democratic legitimacy (association with crisis management rather than repression). "Bien común" built extended phenotype dependent on Church-military institutional fusion (mandatory

Catholic education 1943-1983, Borda's 1968 Civil Code reform, corporatist labor organization, censorship regimes). When democracy dismantled this machinery in 1983, "bien común" usage collapsed by factor of fourteen while the Preamble retained its distinct bienestar general formulation.

Evolutionary Stable Strategy dynamics explain why these outcomes were path-dependent and difficult to reverse. Once "bienestar general" dominated judicial discourse through precedential accumulation and professional training, alternative phrasings faced coordinated disadvantages regardless of semantic merit. Conversely, once "bien común" became associated with authoritarian repression, using it in democratic Argentina signaled professional incompetence or ideological extremism. These frequency-dependent fitness payoffs created lock-in effects where early advantages (or disadvantages) became self-reinforcing.

Cross-national analysis of 47 jurisdictions confirms that vague constitutional language systematically predicts emergency power mutation. Provisions containing "general welfare," "public interest," or similar contested concepts without operational definition increase mutation odds by factor of 17.6 compared to provisions with specific triggers and automatic sunsets. This pattern holds across diverse contexts—U.S. Commerce Clause, Weimar Article 48, Indian Article 356, Argentine Article 75 inc. 2—suggesting general principle rather than Argentina-specific anomaly.

From these findings, I derived five design principles for mutation-resistant emergency clauses: (1) specific falsifiable triggers rather than general conditions; (2) automatic sunset without renewal possibility; (3) graduated thresholds making extension progressively costlier; (4) compensation requirements forcing fiscal tradeoffs; (5) restoration defaults requiring affirmative reenactment. France's Article 16 demonstrates these principles' effectiveness: across 66 years and multiple severe crises, the provision has been invoked once for 5 months, never routinely abused, because its specific triggers and procedural friction prevented mutation.

7.2 Theoretical Contributions

This research advances evolutionary approaches to law in several respects. First, it operationalizes Extended Phenotype Theory beyond metaphor, showing how constitutional phrases construct institutional machinery measurable through citation networks, professional training, administrative budgets, and generational transmission. Second, it integrates Evolutionary Stable Strategy game theory with constitutional interpretation, explaining why certain doctrinal approaches achieve lock-in effects resistant to textual correction. Third, it demonstrates niche

specialization in cultural evolution, showing how semantically similar phrases can evolve radically different fitness profiles depending on institutional environments.

The findings should be assessed against competing constitutional explanations. The reported divergence between bienestar general and bien común does not, by itself, refute textualism: the expressions have different textual and doctrinal anchors, and their normative meanings cannot be presumed interchangeable. Historical interpretation and political economy also remain relevant. The EPT hypothesis is that precedent, professional training and administrative infrastructure help reproduce particular interpretations. Whether this mechanism explains the trajectory from temporary emergency measures to more durable doctrines requires comparison with those alternatives. The distinction between constitutional welfare language and doctrinal common-good reasoning must remain explicit in the historical coding and inferences.

I propose alternative framework: constitutional phrases are cultural replicators whose fitness depends on success in building self-defending institutional machinery. Text influences but does not determine institutional outcomes. Good text with weak institutions fails (Argentina's emergency doctrine, initially justified as temporary in Ercolano 1922 and Avico 1934, evolved into routine authority despite original crisis resolution). Bad text with strong institutions might succeed (scholars debate whether clearer U.S. Commerce Clause language could have prevented expansion given political economy pressures for national regulation). Constitutional evolution is not teleological progress toward better interpretations but memetic competition where success depends on replication machinery rather than normative merit.

7.3 Practical Implications for Constitutional Design

Constitutional designers should accept that vague emergency language will enable mutation and design accordingly. Phrases like "general welfare," "public interest," "national security," "common good"—however natural they appear—create systematic vulnerabilities because they permit elastic interpretation, support judicial deference, and resist falsification. Once elastic interpretation achieves precedential consolidation, reversal becomes effectively impossible even when original justification disappears.

The five design principles derived in Section VI provide operational guidance. Specific triggers, automatic sunsets, graduated thresholds, compensation requirements, and

restoration defaults collectively create friction resisting mutation. No design is mutation-proof—sufficiently determined actors can evade any constraint—but friction matters. France's Article 16 remained unused for 66 years not because France avoided crises but because procedural friction made invocation costly relative to alternatives. Argentina's "bienestar general" expanded from exceptional emergency measure (Ercolano 1922, Avico 1934) to routine authority (Peralta 1990, Badaro 2007) not because Argentina faced uniquely severe crises but because vague language eliminated friction.

Reform agenda for Argentina: Replace current Article 99 inc. 3 (emergency decree authority) with provision specifying that executive decrees may be issued only during declared war or armed rebellion, for maximum 12 months without renewal, automatically expiring unless reenacted through ordinary legislative procedure. Graduated thresholds would require 60% congressional supermajority for any extension beyond 6 months. This would not eliminate executive decree authority immediately—Peralta doctrine has operated for 35 years and enjoys judicial acceptance—but would require explicit congressional choice: either (a) formally amend Constitution to authorize routine executive legislation, acknowledging current practice violates Article 99 inc. 3's restriction to "exceptional circumstances," or (b) restore legislative primacy by requiring genuine emergencies with automatic sunsets for decree authority.

Beyond Argentina, the framework applies anywhere constitutional designers must choose between vague and specific emergency language. International organizations drafting model constitutions, countries undergoing constitutional transitions, and activists proposing amendments should recognize that semantic vagueness is not neutral choice but systematic mutation pathway. If flexibility is essential, provide it through explicit authorization of specific temporary measures rather than through vague language enabling indefinite expansion.

7.4 Broader Stakes: Constitutional Text versus Constitutional Practice

The divergence between "bienestar general" and "bien común" illuminates fundamental question about constitutionalism itself: What role does constitutional text play when institutional practice systematically deviates? Traditional constitutional theory treats text as supreme law, with practice properly subordinated to textual command. My findings suggest inverse relationship: when institutions build sufficient extended phenotypes, practice becomes supreme while text becomes epiphenomenal.

Argentine jurisprudence invokes "bienestar general" to justify expansive state intervention based on Ercolano-Avico-Peralta-Badaro lineage spanning 103 years. Courts routinely defer to legislative and executive invocations of "general welfare." Law schools teach this doctrine as foundational constitutional principle. Administrative agencies implement welfare programs and emergency measures under "bienestar general" authority. No serious political movement questions this framework. Yet Ercolano (1922) and Avico (1934) originally justified intervention as temporary emergency measures responding to acute crises—housing shortage, Depression mortgage defaults.

Extended Phenotype Theory suggests that institutional practice is the operative constitution because it reflects what actually reproduces across generations of legal actors. Judges trained in Ercolano-Avico-Peralta-Badaro doctrine, lawyers invoking "bienestar general" in welfare and regulatory cases, bureaucrats administering social programs under elastic emergency authority—these actors constitute the living membrane through which constitutional norms transmit. Text provides rhetorical resources for constitutional argument, but when text and practice diverge for sufficiently long periods, practice wins because it controls transmission mechanisms.

This is not normative claim about how constitutions should work but positive claim about how they do work in evolutionary perspective. Normatively, one might prefer textual supremacy, living constitutionalism, popular sovereignty, or other constitutional theories. Positively, institutional practice exhibits evolutionary dynamics that often render textual commands irrelevant if practice builds sufficient extended phenotype.

The implication is sobering for constitutional designers: perfect text is insufficient if institutions lack commitment to enforcement. Argentina's framers included "for determinate time" precisely to prevent permanent emergency taxation. That language was clear, unambiguous, and directly violated. The violation succeeded because judicial precedent, revenue dependence, and professional training created extended phenotype stronger than textual constraint.

Constitutional fidelity therefore requires not merely good text but institutional cultures prioritizing compliance over expedience. Such cultures depend on: professional legal communities treating constitutional violation as career-disqualifying; courts resisting precedential accumulation supporting elastic interpretation; civic organizations monitoring compliance and mobilizing constituencies for enforcement; political parties sacrificing short-term advantage to maintain constitutional norms; educational

institutions teaching that constitutional text matters and violations are exceptional rather than routine.

These institutional prerequisites explain why similar constitutional provisions produce different outcomes across jurisdictions. Some countries maintain emergency provisions unused for decades while others routinely abuse theirs not because of textual differences but because of institutional culture differences. Building such culture requires generational commitment that survives any individual constitutional moment.

7.5 Final Thoughts: The Immortality of Vague Language

I conclude with observation that vague constitutional language exhibits remarkable evolutionary success despite—or because of—enabling constitutional mutation. Argentina's "bienestar general" has thrived for 103 years, spreading virally through precedential lineages, generating extensive doctrine, sustaining professional ecosystems. It achieved this success precisely by being semantically elastic: the phrase accommodated rent control (1922), mortgage moratorium (1934), economic emergency decrees (1990), pension indexation (2007), and countless other applications. This flexibility made it adaptable to changing circumstances without requiring amendment.

From normative constitutional theory perspective, this is failure: vague language undermined constitutional constraints and enabled systematic violations. From evolutionary perspective, this is success: vague language replicated effectively across generations by accommodating environmental variation. The phrase survived because it was useful to multiple constituencies across diverse contexts, each finding ways to invoke "bienestar general" for their purposes.

"Bien común," conversely, was too specialized. Its tight coupling to Catholic-authoritarian institutional forms made it highly fit within narrow niche but vulnerable to environmental change. When democracy dismantled its extended phenotype, the paper reports a decline in its doctrinal use; this is not the disappearance of a phrase found in the Preamble. From normative perspective, this might seem like success—discredited authoritarian language was purged from practice. From evolutionary perspective, this is extinction: the meme failed to adapt to environmental transformation.

The paradox is that what makes constitutional language normatively good (specificity, clarity, resistance to manipulation) often makes it evolutionarily vulnerable (rigidity, requiring frequent amendment, inability to accommodate unforeseen circumstances). What makes language evolutionarily successful (vagueness, flexibility,

accommodation of diverse interests) often makes it normatively problematic (enabling mutation, undermining constraints, facilitating violations).

Constitutional designers cannot escape this tradeoff. They must choose knowing that specific language may prove rigid while vague language will enable mutation. My framework suggests that when stakes are highest—emergency powers, taxation authority, rights limitations—specificity is worth rigidity costs because mutation risks are existential. For other constitutional domains where flexibility is essential and mutation risks are manageable, vagueness may be appropriate. But designers should make this choice consciously, recognizing evolutionary dynamics rather than assuming vague language is semantically neutral.

The 103-year divergence between "bienestar general" and "bien común" in Argentina offers profound lesson: constitutional words are not merely semantic choices but genetic code for institutional construction. Choose vague words and build adaptable institutions capable of mutation. Choose specific words and hope institutional culture maintains fidelity when mutation pressure increases. But do not assume that good drafting alone will prevent evolutionary dynamics that have operated in legal systems for centuries and will continue operating regardless of framers' intentions.

7.6 Limitations and Future Research

This study has three main limitations that future research should address:

Limitation 1: Case Selection Bias

Argentina as primary case may over-emphasize dynamics specific to Latin American contexts: Catholic-military alliances, weak federalism, cyclical democratic breakdowns. The fitness differential between "bien común" and "bienestar general" might reflect idiosyncratic features of Argentine political history rather than universal patterns. While cross-national validation (Section V) includes 47 jurisdictions, coding granularity is lower than for Argentina. Future research should conduct equally detailed analyses of 5-10 additional countries representing diverse constitutional families (common law, civil law, mixed), regime types (stable democracies, transitional democracies, authoritarian), and religious contexts (Catholic, Protestant, secular, Islamic).

Limitation 2: Measurement of Memetic Fitness

JurisRank and citation counts capture **formal influence** through case law but miss **informal influence** through legal education, bar exams, administrative practice, and bureaucratic routines. A doctrine might propagate extensively via law school curricula

without generating judicial citations; conversely, a doctrine might be frequently cited yet have minimal impact on actual legal outcomes. "Bien común" could be present in Argentine administrative practice (ministerial decrees, regulatory guidance) without appearing in Supreme Court jurisprudence, and my methodology would miss this.

Future research should employ **mixed methods**: (1) content analysis of legal education syllabi to measure classroom transmission, (2) surveys of practicing attorneys about doctrinal salience in daily practice, (3) analysis of administrative rulemaking mentioning constitutional phrases, (4) interviews with judges about informal influences on decision-making. Combining formal citation analysis with ethnographic methods would provide richer understanding of memetic transmission mechanisms.

Limitation 3: Causality versus Correlation

Although correlation between vague language and mutation is strong (odds ratio 17.6, $p<0.001$), inferring causation is difficult without experimental or quasi-experimental designs. Possible confounding: countries that write vague emergency provisions also tend to have weak judiciaries, low accountability, and concentrated executive power. These factors might drive mutation independently of linguistic vagueness.

Ideal research design would require: (1) **natural experiments** where countries randomly receive vague versus specific emergency language (impossible), or (2) **instrumental variables** identifying exogenous shocks that affect constitutional vagueness but not institutional quality. Absent these, we must interpret findings as **consistent with EGT predictions** while acknowledging alternative explanations remain possible.

Future research could exploit quasi-experimental variation: constitutional reforms that change emergency language specificity without altering other institutional features. For example, Canada's 1988 *Emergencies Act* replaced *War Measures Act* with more specific triggers and procedural requirements; comparing pre/post mutation rates, controlling for temporal trends, could strengthen causal inference. Similarly, analyzing countries that amended constitutions to add sunset clauses (e.g., Germany 1968 emergency amendments) provides within-country comparison.

Future Research Agenda

Five research directions emerge from these limitations:

1. Geographic Expansion: Replicate analysis for Asian and African countries (88% of humanity lives in non-WEIRD contexts). Do fitness dynamics differ in countries with

non-Western legal traditions (Islamic law, customary law, socialist law)? Is vague language equally problematic in countries with different accountability structures?

2. Temporal Granularity: Conduct fine-grained temporal analysis identifying **critical windows** where doctrinal mutations are most likely. Do mutations cluster around regime transitions, economic crises, or generational turnover? Can we predict ex ante when a constitutional clause is vulnerable to reinterpretation?

3. Carrier Networks: Analyze role of **legal elites** as meme carriers. Who are the successful propagators of constitutional doctrines? Do certain educational backgrounds, professional networks, or institutional positions predict successful doctrinal entrepreneurship? Network analysis of judges, law professors, and government lawyers could reveal transmission pathways.

4. Laboratory Experiments: Simulate constitutional interpretation with human subjects. Participants (law students, practicing attorneys) receive vague versus specific constitutional text and decide hypothetical cases. Measuring how interpretations drift over time, and whether procedural friction (e.g., requirement to justify decisions publicly) constrains drift, would provide experimental validation of EGT predictions.

5. Machine Learning Applications: Train predictive models on constitutional text features (vagueness measures, syntactic complexity, semantic ambiguity) and institutional variables to forecast which provisions will mutate. If model achieves >70% accuracy on hold-out set, policymakers could use it prospectively to identify high-risk constitutional language during drafting.

Despite these limitations, I believe the EGT framework offers substantial explanatory and predictive value beyond existing constitutional theories. It explains patterns (regime-specific fitness, niche specialization, extinction of judicially-endorsed doctrines) that textualism, originalism, and living constitutionalism cannot. It generates falsifiable predictions (Barra fitness = -0.636 → 0 citations) validated empirically. It provides actionable design principles (automatic sunsets, institutional friction) supported by comparative evidence (Swiss/Canadian restraint). Future research addressing limitations will strengthen these contributions.

APPENDIXES

APPENDIX A: METHODOLOGY

A.1 Evolutionary Game Theory Framework

This study applies Evolutionary Game Theory (EGT) to analyze the propagation and extinction of legal doctrines. In EGT, strategies compete based on their **fitness**—the capacity to replicate in a given environment. Unlike classical game theory, which assumes rational actors maximizing utility, EGT models frequency-dependent selection: a strategy's success depends on the distribution of competing strategies in the population and on environmental conditions (Maynard Smith 1982; Vince and Brown 2005).

I define the **G-function** (fitness function) as:

$G(s, E) = \Sigma w_i * f_i(E)$

Where:

- s = doctrinal strategy (e.g., "common good = good of State")
- E = environmental vector (democracy score, international pressure, judicial independence, etc.)
- w_i = weight of environmental factor i
- $f_i(E)$ = factor value normalized to [0,1]

A strategy has **positive fitness** ($G > 0$) if it can propagate through citations, adoption by lower courts, and inclusion in legal scholarship. **Negative fitness** ($G < 0$) implies extinction: the doctrine dies with its initial carrier. **Zero fitness** ($G \approx 0$) indicates neutrality: the doctrine persists but does not expand.

In this study, I operationalize fitness through two metrics:

1. **Theoretical fitness**: G-value calculated from environmental variables (ex ante prediction)
2. **Empirical fitness**: Citation count and adoption rate (ex post validation)

The key theoretical insight is **context-dependence**: the same doctrinal formulation can have positive fitness in one environment (e.g., authoritarian regime) and negative fitness in another (e.g., democracy with active human rights movements).

A.2 Environmental Variables

I code five environmental variables for Argentina across 1970-2024, derived from V-Dem, Freedom House, and Lerer (2025) clerical strength indices:

Variable	Definition	Range	Source	Argentina 1991	Argentina 1979
CSI	Clerical Strength Index: clerical influence on state policy	[0,1]	Lerer (2025)	0.68	0.75
democracy_score	Electoral democracy index	[0,1]	V-Dem v13	0.55	0.12
international_hr_pressure	International human rights pressure	[0,1]	V-Dem + Simmons (2009)	0.40	0.15
lgbtq_movement_strength	LGBTQ+ movement visibility and organization	[0,1]	CHA Archives + news corpus	0.30	0.05
judicial_independence	Judicial independence from executive	[0,1]	V-Dem v13	0.35	0.10

CSI (Clerical Strength Index): Composite measure combining: (1) constitutional status of Catholic Church, (2) Church funding from state budget, (3) clerical appointments to state positions, (4) Church influence on education policy, (5) state deference to episcopal pronouncements. Scale constructed following Fox (2015) Government Involvement in Religion methodology, adapted for Argentina 1853-2025. Full details in Lerer (2025) working paper.

Democracy score: V-Dem Electoral Democracy Index (v2x_polyarchy), normalized to [0,1]. Argentina 1991 = 0.55 reflects fragile but consolidating democracy post-1983 transition. Argentina 1979 = 0.12 reflects military dictatorship (1976-1983).

A.3 Doctrinal Strategy Classification

I classify constitutional doctrines into five ideal-type strategies based on textual markers in judicial opinions:

Strategy	Core Claim	Textual Markers	Example Case
Estatista	"Common good = good of State"	"el bien común es el bien estatal", "el Estado define el bien común"	Barra in CHA 1991
Liberal	"Individual rights constrain State"	"derechos individuales", "autonomía personal"	ALITT 2006
Capability	"State must enable flourishing"	"desarrollo de capacidades", "libertad sustantiva"	Badaro 2007
Tomista Auténtico	"Common good ≠ State; transcends State"	"bien común de la comunidad", "subsidiariedad"	[No clear Argentine example]
Pragmático	"Balance case-by-case"	"ponderación", "razonabilidad", "proporcionalidad"	Peralta 1990

Coding protocol: Two coders (author + research assistant) independently coded 15 CSJN cases (1991-2024) using these categories. Inter-coder reliability (Cohen's κ) = 0.82 for primary strategy, 0.71 for secondary strategy. Disagreements resolved through discussion.

Critical distinction: Estatista vs. Tomista Auténtico: Barra's formulation "bien común = bien del Estado" is classified as **Estatista**, not authentic Thomism, because Thomas Aquinas explicitly distinguishes *bonum commune* from *bonum regis*. Authentic Thomism reserves *bonum commune* for the community's transcendent good, which the State serves but does not embody. Barra's formulation grants the State discretionary power to define common good, incompatible with Thomistic natural law.

A.4 Citation Analysis Protocol

Databases searched:

1. SAIJ (Sistema Argentino de Información Jurídica): Official database of Argentine case law
2. Google Scholar: Academic articles citing CHA 1991
3. vLex Argentina: Commercial legal database (1991-2024)
4. HeinOnline: Law journals and reviews (Spanish language)

Search strategy:

- Primary: "Comunidad Homosexual Argentina" + "Fallos 314:1531" (1991-2024)
- Secondary: "Rodolfo Barra" + "bien común" + "asociaciones"
- Tertiary: "bien común = bien del Estado" (exact phrase)

Citation coding:

- **Favorable** = cites CHA 1991 approvingly, adopts reasoning
- **Critical** = cites CHA 1991 to reject reasoning
- **Neutral** = cites CHA 1991 for factual background only

Results:

- Total citations found: 17
    - Favorable: 0
    - Critical: 4 (including ALITT 2006)
    - Neutral: 13 (factual background)

Validation: To control for search bias, I replicated the search for a successful contemporary doctrine (*Peralta* 1990, emergency economic powers). Result: 127 total citations, 98 favorable, 15 critical, 14 neutral. This confirms My search protocol can detect successful propagation when present.

A.5 Software and Replication

Software:

- Python 3.11.5
- Key libraries: pandas (2.1.0), numpy (1.24.3), scipy (1.11.2), matplotlib (3.7.2)

Replication materials: All code, data, and documentation available at: 📁 **GitHub**: https://github.com/adrianlerer/bien-comun-bienestar-general/tree/main/bien-comun-egt

Repository structure:

```
bien-comun-egt/
├── analysis/
│   ├── egt_bien_comun_analysis.py
│   └── fitness_landscape_argentina.png
├── datasets/
│   └── bien_comun_bienestar_general.csv
├── casos/
│   └── CASO_BARRA_CHA_1991.md
└── docs/
    └── PROPAGACION_BARRA_HALLAZGOS.md
```

Computational requirements: Standard laptop (8GB RAM). Runtime: <5 minutes for full analysis.

A.6 Limitations

1. Single-country focus: Argentina is the primary case. Cross-national validation includes 47 jurisdictions but with less granular coding.

2. Measurement of informal influence: Citation analysis captures formal influence but not informal influence through legal education, bar exams, administrative practice.

3. Causality: Although correlation between environmental variables and fitness is strong, inferring causation is difficult without experimental design.

4. G-function weights: Weights w_i are calibrated through iterative fitting to known cases, introducing circularity. This reduces out-of-sample predictive power.

5. Counterfactual untestable: Claim that Barra's doctrine would have had positive fitness in 1979 dictatorship is counterfactual and cannot be directly tested.

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